

Study Notes

New Criminal Law

Part 1

BNSS

The Bharatiya Nagarik Suraksha Sanhita 2023 (BNSS) has been introduced as part of a comprehensive reform to replace the nearly five-decade-old Code of Criminal Procedure, 1973 (CrPC). The new law aims to modernize India's criminal justice system by streamlining procedures, and enhance the balance between law enforcement efficiency and individual rights.

Highlights of BNSS

- i. **Report Incidents Online:** A person may now report incidents by electronic communication, without the need to physically visit a police station. This allows for easier and quicker reporting, facilitating prompt action by the police.
- ii. **File FIR at any Police Station:** With the introduction of Zero FIR, a person can file a First Information Report (FIR) at any police station, regardless of jurisdiction. This eliminates delays in initiating legal proceedings and ensures immediate reporting of the offence.
- iii. **Free Copy of FIR:** Victims will receive a free copy of the FIR, ensuring their participation in the legal process.
- iv. **Right to Inform Upon Arrest:** In the event of an arrest, the individual has the right to inform a person of his choice about their situation. This will ensure immediate support and assistance to the arrested individual.
- v. **Display of Arrest Information:** Arrest details will now be prominently displayed within police stations and district headquarters, allowing families and friends of the arrested person easy access to important information.
- vi. **Forensic Evidence Collection and videography:** To strengthen the case and investigations, it has become mandatory for forensic experts to visit crime scenes for serious offences and collect evidence. Additionally, the process of evidence collection at the crime scene will be mandatorily video

graphed to prevent tampering of evidence. This dual approach significantly enhances the quality and reliability of investigations and contributes to a fair administration of justice.

vii. **Fast-Track Investigations:** The new laws prioritized the investigations for offences against women and children, ensuring timely completion within two months of recording information.

viii. **Progress Updates to Victims:** Victims are entitled to get update on the progress of their case within 90 days. This provision keeps victims informed and involved in the legal process, enhancing transparency and trust.

ix. **Free Medical Treatment for Victims:** The new laws guarantee free first-aid or medical treatment to victims of crimes against women and children at all hospitals. This provision ensures immediate access to essential medical care, prioritizing the well-being and recovery of victims during challenging times.

x. **Electronic Summons:** Summons can now be served electronically, expediting legal processes, reducing paperwork, and ensuring efficient communication between all parties involved.

xi. **Woman Magistrate's Power:** For certain offences against woman, statements of the victim are to be recorded, as far as practicable, by a woman Magistrate and in her absence, by a male Magistrate in the presence of a woman to ensure sensitivity and fairness, creating a supportive environment for victims.

xii. **Supply of police report and other documents:** Both the accused and the victim are entitled to receive copies of the FIR, police report/chargesheet, statements, confessions, and other documents within 14 days.

xiii. **Limited Adjournments:** Courts grant a maximum of two adjournments to avoid unnecessary delays in case hearings, ensuring timely justice delivery.

xiv. **Witness Protection Scheme:** The new laws mandate all State Government to implement Witness Protection Scheme to ensure the safety and cooperation of witnesses, enhancing the credibility and effectiveness of legal proceedings.

xv. **Gender Inclusivity:** The definition of "gender" now includes transgender individuals, promoting inclusivity and equality.

xvi. **All proceedings in Electronic Mode:** By conducting all legal proceedings electronically, the new laws offer convenience to victims,

witnesses, and accused, thereby streamlining and expediting the entire legal process.

xvii. **Audio-Video Recording of Statements:** In order to provide more protection to the victim and enforce transparency in investigation related to an offence of rape, the statement of the victim shall be recorded through audio video means by police.

xviii. **Exemption from going to police station:** Women, persons below 15 years, persons above 60 years, and those with disabilities or acute illness are exempt from attending police stations.

xix. **Offences Against Women and Children:** A new chapter has been added in BNS specifically to address offences against women and children, ensuring focused protection and justice.

xx. **Gender-Neutral Offences:** Various offences against women and children have been made gender-neutral in BNS, covering all victims and perpetrators regardless of gender.

xxi. **Community service:** The new laws introduce community service for minor offences promoting personal growth and social responsibility of an individual. Under community service, the offenders get the chance to positively contribute to society, learn from their mistakes, and build stronger community bonds.

xxii. **Aligned Fines for Offences:** Under new laws, the fines imposed for certain crimes have been aligned with the severity of the offences, ensuring fair and proportional punishment, deterring future offences, and maintaining public trust in the legal system.

xxiii. **Simplified Legal Processes:** The legal processes have been simplified to make them easier to understand and follow, ensuring fair and accessible justice.

xxiv. **Faster and Fair Resolution:** The new laws promise a faster and fair resolution of cases, instilling confidence in the legal system.

1. Types of Criminal Courts and its Powers

The judicial system in India is established in such a way that any person can approach the courts easily.

As per Section 6 of BNSS, 2023 states that besides the High Courts and the Courts constituted under any law, other than this Sanhita, there shall be, in every State, the following classes of Criminal Courts, namely: —

- Courts of Session
- Judicial Magistrates of the first class
- Judicial Magistrates of the second class
- Executive Magistrates.

Sessions Judge: Section 8 of the BNSS provides for Court of Sessions. Clause (1) states that the State Government shall establish a Court of Session for each sessions division. Clause (2) states that every Court of Session shall be presided over by a Judge, to be appointed by the High Court.

Additional Sessions Judge: Clause (3) of Section 8 of BNSS states that the High Court may also appoint Additional Sessions Judges to exercise jurisdiction in a Court of Session.

Clause (7) states that the Sessions Judge may, from time to time, make orders consistent with this Sanhita, as to the distribution of business among such Additional Sessions Judges.

Clause (8) states that the Sessions Judge may also make provision for the disposal of any urgent application, in the event of his absence or inability to act, by an Additional Sessions Judge or if there be no Additional Sessions Judge, by the Chief Judicial Magistrate.

Assistant Session Judge: The concept of Assistant Sessions Judge has been removed from the provisions of BNSS which was earlier present under CrPC.

Courts of Judicial Magistrates: Section 9 provides for Courts of Judicial Magistrates. Clause (1) states that in every district there shall be established as many Courts of Judicial Magistrates of the first class and of the second class by the State Government after consultation with the High Court.

Special Courts of Judicial Magistrates: According to Section 11, the State Government may, after consultation with the High Court, establish, for any local area, one or more Special Courts of Judicial Magistrates of the first class or of the second class to try any particular case or particular class of cases. No other Court of Magistrate in the local area shall have jurisdiction to try any case or class of cases for the trial of which such Special Court of Judicial Magistrate has been established.

Clause (2) provides that Such Magistrates shall be called Special Judicial Magistrates and shall be appointed for such term, not exceeding one year at a time, by the High Court.

Chief Judicial Magistrate: Section 10 of BNSS provides for Chief Judicial Magistrate and Additional Chief Judicial Magistrate. Clause (1) states that in every district, the High Court shall appoint a Judicial Magistrate of the first class to be the Chief Judicial Magistrate. Clause (2) states that the High Court may appoint any Judicial Magistrate of the first class to be an Additional Chief Judicial Magistrate.

Clause (3) states that the High Court may designate any Judicial Magistrate of the first class in any sub-division as the Sub-divisional Judicial Magistrate and relieve him of the responsibilities specified in this section as occasion requires.

Subordination of Judicial Magistrates: Section 13 of BNSS provides that subordination of Judicial Magistrates. Clause (1) states that every Chief Judicial Magistrate shall be subordinate to the Sessions Judge; and every other Judicial Magistrate shall, subject to the general control of the Sessions Judge, be subordinate to the Chief Judicial Magistrate.

Clause (2) states that the Chief Judicial Magistrate may, from time to time, make rules or give special orders, consistent with this Sanhita, as to the distribution of business among the Judicial Magistrates subordinate to him.

Subject to the general control of the Chief Judicial Magistrate, every Sub-divisional Judicial Magistrate shall exercise, such powers of supervision and control over the work of the Judicial Magistrates in the sub-division.

Executive Magistrate: Section 14 of BNSS provides for executive magistrate. Clause (1) states that in every district, the State Government may appoint as many persons as it thinks fit to be Executive Magistrates and shall appoint one of them to be the District Magistrate.

Clause (2) states that the State Government may appoint any Executive Magistrate to be an Additional District Magistrate, and such Magistrate shall have such of the powers of a District Magistrate under this Sanhita or under any other law for the time being in force as may be directed by the State Government.

Clause (3) states that whenever, in consequence of the office of a District Magistrate becoming vacant, any officer succeeding temporarily to the executive administration of the district can exercise all the powers of a District Magistrate.

Clause (4) states that the State Government may place an Executive Magistrate in charge of a sub-division and he shall be called the Sub-divisional Magistrate.

Clause (5) states that the State Government may, by general or special order and subject to such control and directions as it may deem fit to impose, delegate its powers under sub-section (4) to the District Magistrate. Special Judicial Magistrates. Local jurisdiction of Judicial Magistrates. Subordination of Judicial Magistrates. Executive Magistrates.

Special Executive Magistrates: Section 15 of BNSS states for Special Executive Magistrates. It states that the State Government may appoint, for such term as it may think fit, Executive Magistrates or any police officer not below the rank of Superintendent of Police or equivalent, to be known as Special Executive Magistrates, for particular areas or for the performance of particular functions. He will enjoy all the powers of an Executive Magistrate.

Metropolitan Magistrate: The concept of Metropolitan Magistrate, earlier present in the CrPC, no longer exists under the BNSS.

2. Cognizable & Non-Cognizable Offences

Cognizable Offence (serious crime)	Non-Cognizable Offence (non-serious crime)
Police can arrest without a warrant & start an investigation on their own without a court order.	Police cannot arrest without warrant or investigation without court permission.
An FIR is filed in such case. Ex- Rape, Murder, Kidnapping, etc.	Instead of an FIR, a Non-Cognizable Report (NCR) is filed by the police. Ex- Forgery, Cheating, Defamation, etc

3. Taking Cognizance of Case by Police or Filing FIR

First Information Report: The Section 173 of BNSS (Earlier Section 154 CrPC) deals with the First Information Report (FIR). It is a written document prepared by the police when they receive for the first time information about the commission of a cognizable offence. Anyone can report the commission of a cognizable offence either orally or in writing to the police. It is generally a complaint lodged with the police by the victim of a cognizable offence or by someone on his/her behalf. Even a telephonic message can be treated as an FIR.

The Supreme Court ruled that the police must record information about a cognizable offence in the FIR book, not in the General Diary. However, the gist of the FIR must be recorded in the General Diary.

FIR is not defined as such in the Criminal Law, but it means information relating to the commission of a cognizable offence given to the police first in point of time. An FIR is a super important document as it starts the motion of criminal procedures. And the police begin investigating a case only after the FIR is filed. A copy of the FIR must be given to the informant or victim free of cost as per Section 173(2). False

Preliminary Inquiry before filing FIR: A new provision of preliminary inquiry before the filing of FIR by the police has been added to the BNSS. As soon as the local Police is intimated that a cognizable offence has been committed in their local jurisdiction, the police officer in charge may with the prior permission of a senior officer conduct a preliminary enquiry to determine whether a *prima facie* case for proceeding in the matter exists under Section 173(3) BNSS. This must be within a period of 14 days. After the preliminary inquiry, if the police officer concerned is satisfied that a *prima facie* case exists to proceed under Section 173(3), the police will proceed with further investigation.

Under BNSS, preliminary inquiry is conducted to ascertain if there is a *prima facie* case for offences punishable with three years or more but less than seven years of imprisonment. However, this directly contradicts the Supreme Court's ruling in **Lalita Kumari vs. Government of Uttar Pradesh** case where it was held that a police officer must mandatorily register an FIR if the information received discloses any cognizable offence (as was mandated under Section 154 of the CrPC).

The process of preliminary inquiry may limit the number of FIRs being filed and in turn reduce the burden of frivolous FIRs being registered. But it inevitably raises concerns over complainants being dependent on the police's discretion to have their FIRs registered. This will give police arbitrary powers, leading to the non-registration of FIR in many cognizable cases under the influence of money or muscle power. In the name of preliminary inquiry, the police may also make delay in filing FIR in genuine cases.

With the introduction of the BNSS, new provisions have been brought to the FIR process, such as Zero FIR and e-FIR.

e-FIR: The BNSS allows for the electronic registration of FIRs. You can file an e-FIR by visiting the police department's website and selecting the option to file an FIR online.

To file an e-FIR, you'll need to provide the following information:

- Your name, date of birth, email address, and registered mobile number
- Your complete address, including the district
- The accused's full address, including the district and phone number, if known
- Your Aadhaar number
- The date and place of the incident
- A chronological account of the incident or facts related to the complaint

This type of FIR can be convenient, time-saving, and easy to access. They can also help to reduce bureaucracy, improve transparency, and encourage citizen participation. e-FIRs might not be suitable for cases that require immediate investigation, such as fatal accidents or grievous hurt incidents. Not all police stations have the necessary infrastructure to handle e-FIRs efficiently.

Zero FIR: The BNSS includes the concept of Zero FIR under Section 173. An e-FIR is a digital version of a First Information Report (FIR) that can be filed online.

The said police station registering the FIR can transfer the FIR/ investigation to the concerned police station under whose jurisdiction the offence has been committed.

This section mandates that a police station's officer in-charge must register a Zero FIR if a cognizable offense is reported, even if the incident occurred outside of their jurisdiction. Zero FIR allows victims to file a complaint at any police station, regardless of jurisdiction. This ensures that victims can register a complaint without delay, and the FIR is later transferred to the appropriate police station for investigation.

If the police refuse to file FIR: If the police at any point refuse to register an offence, the aggrieved person can approach the magistrate by making an application under Section 175(3) of the BNSS to present their case. A direction may then be given by the magistrate to the police to take cognizance of the case. Before approaching the magistrate, the aggrieved person will have to comply

with Section 173(4) of BNSS to inform the Superintendent of Police/ Deputy Commissioner of Police (SP/ DCP) about the failure of the police officer to register an FIR. The SP/ DCP may, on being satisfied that a cognizable offence has been committed, investigate the case themselves or direct the investigation to be made by any officer subordinate to him.

4. Arrest in Cognizable Cases

Police can arrest a person without a warrant only in certain prescribed cases under Section 35 of BNSS. For instance, subject to the prescribed conditions, arrests can be made for cognizable offences. However, arrests cannot be made for non-cognizable offences without a warrant. An arrest has to be made in accordance with the provisions of the criminal procedural code.

Any police officer may without an order from a Magistrate and without a warrant, arrest any person under Section 35 sub section (1);

1. who has been concerned in any cognizable offence, or against whom a reasonable complaint has been made, or credible information has been received, or a reasonable suspicion exists, of his having been so concerned; or
2. who has in his possession without lawful excuse, the burden of proving which excuse shall lie on such person, any implement of house-breaking; or
3. who has been proclaimed as an offender either under this Code or by order of the State Government; or
4. in whose possession anything is found which may reasonably be suspected to be stolen property and who may reasonably be suspected of having committed an offence with reference to such thing; or
5. who obstructs a police officer while in the execution of his duty, or who has escaped, or attempts to escape, from lawful custody; or
6. who is reasonable suspected of being a deserter from any of the Armed Forces of the Union; or
7. who has been concerned in, or against whom a reasonable complaint has been made, or credible information has been received, or a reasonable suspicion exists, of his having been concerned in, any act committed at any place out of India which, if committed in India, would have been punishable as an offence, and for which he is, under any law relating to

extradition, or otherwise, liable to be apprehended or detained in custody in India; or

8. who, being a released convict, commits a breach of any rule made under Sub-Section (5) of section 356; or
9. for whose arrest any requisition, whether written or oral, has been received from another police officer, provided that the requisition specifies the person to be arrested and the offence or other cause for which the arrest is to be made and it appears therefrom that the person might lawfully be arrested without a warrant by the officer who issued the requisition.

Arrest in non-cognizable cases

Any offence of which cognizance cannot be taken by the police is a non-cognizable offence. In cases of non-cognizable offences, a police officer has no authority to arrest without a warrant from the magistrate. The police must obtain an order under Section 174(2) of BNSS from the magistrate. Once such an order is obtained, the police may treat the said case in the same way as a cognizable offence.

Arrest by Private Persons: Under the CrPC, any private person could arrest a proclaimed offender or a person who commits a cognizable non-bailable offence in his presence. After such arrest, the private person was required to handover the arrested person to the police 'without unnecessary delay'. However, under BNSS, the private person is required to handover the arrested person to the police within six hours of the arrest (Section 40, BNSS). Further, under the CrPC, when the police took custody of the person arrested by a private person, it was referred to as 're-arrest' which led to confusion (S. 43, CrPC). The BNSS has clarified that when the police take custody of a person arrested by a private person, it is not 're-arrest', but amounts to taking custody by the police.

Procedures of arrest or rights of arrested person

Arrest of infirm or aged persons: Now, for offences punishable with imprisonment of less than 3 years, police cannot arrest a person who is infirm or above 60 years of age without obtaining the prior permission of an officer not below the rank of a DSP (Section. 35(7), BNSS).

Information of arrest: Under the CrPC, the person arrested was entitled to name a friend or relative who must be informed by the police of the arrest, unless the arrest memo was attested by a family member as a witness (S.41-B, CrPC). The BNSS now provides that the person arrested can name 'any' person

(and not necessarily a friend or relative) to be informed of his arrest (S.36, BNSS).

Designated police officer: Under the CrPC, the State Government was required to establish control rooms at district and State level for information on arrested persons (S. 41-C, CrPC). Under the BNSS, in addition to such control rooms, State Governments are required to designate a police officer in every district and police station for maintaining information about persons arrested and their offences. This information is required to be displayed prominently (including in digital mode) in every district headquarter and police station (S.37, BNSS).

Handcuffs: BNSS allows a police officer to use handcuffs while arresting a person or producing him before court if he is a habitual offender, or has escaped from custody, or has committed certain specified grave offence (e.g., murder, rape, terrorist act, etc.) (S. 43(3), BNSS).

Medical Practitioner: Under the CrPC (S.53), only a police officer not below the rank of sub-inspector could have requested for a medical examination of the accused. Now, any police officer can request for such examination (S. 51, BNSS). It is also now mandatory for the medical practitioner to forward the examination report to the investigating officer without any delay (S. 51(3), BNSS), which was not expressly set out in the CrPC.

Timeline for production before Magistrate upon arrest: Under the CrPC, a police officer who arrests a person without warrant is required to produce him before the '*Magistrate having jurisdiction in the case*' within 24 hours and cannot detain him in custody for more than 24 hours without the Magistrate's order. This period of 24 hours is exclusive of the time necessary for the journey from the place of arrest to the Magistrate's Court.

However, while the police may endeavour to produce the arrested person before the jurisdictional Magistrate, the police are also permitted to produce the arrested person before the nearest Magistrate (who need not be the jurisdictional Magistrate) to meet the 24 hours timeline. BNSS has now expressly clarified (in S.58) that the 24 hours will be exclusive of the time necessary for the journey from the place of arrest to the Magistrate's Court '*whether having jurisdiction or not*'.

Bail & Bond

The Code of Criminal Procedure did not define the terms such as bail, bail bond and bond. But the BNSS has come up with definitions. Given below are the definitions:

- Section 2(b) - "bail" means release of a person accused of or suspected of commission of an offence from the custody of law upon certain conditions imposed by an officer or Court on execution by such person of a bond or a bail bond;
- Section 2 (d) "bail bond" means an undertaking for release with surety;
- Section 2 (e) "bond" means a personal bond or an undertaking for release without surety;

Bail: The term "bail" finds its roots in the old French word "Baillier," signifying delivery or handover. Bail is the provisional release of an accused person awaiting trial in exchange for a specified sum placed as security with the proper authorities to ensure their attendance in court.

The Supreme Court, in *Kamla Pati v. State of West Bengal* (1978), defined bail as a mechanism aiming to harmonize the right to personal freedom for the accused with the public interest, conditional on the accused appearing in court for trial.

The granting or denial of bail holds significant importance for society, as every criminal offense is viewed as an offense against the society. Striking a delicate balance between individual liberty and societal interests is crucial, as expressed by Justice Dalveer Bhandari in *S.S. Mhetre v. State of Maharashtra* (2010).

The norm is to grant bail, making rejection an exception, as emphasized in the *Satender Kumar Antil v. Central Bureau of Investigation* (2022) case.

The legal standing of bail is mainly derived from Article 21 of the Indian Constitution. Bail, especially anticipatory bail, is grounded in the presumption of innocence, a fundamental value articulated in Article 11 of the Universal Declaration of Human Rights (UDHR).

Bailable Offense: Defined by Section 2(c) of the BNSS, these offenses allow for bail as a matter of right under Section 478 BNSS when specified conditions are met. The police may grant bail to the offender at the time of arrest or detention.

Non-Bailable Offense: These offenses, where bail cannot be granted as a matter of right, are governed by Sections 480 and 483 of the BNSS. Judicial discretion plays a crucial role in deciding bail for non-bailable offenses, which are typically more severe, carrying a penalty of three years or more.

Types of Bail: Bail in India encompasses four types based on the stage of criminal proceedings, namely Regular Bail, Interim Bail, Anticipatory Bail, and Statutory Bail.

Regular bail is granted after arrest, ensuring attendance at trial. Section 480 of the BNSS empowers the magistrate's court to grant regular bail for non-bailable offenses. The Section 483 of the BNSS extends this to the High Court or the Sessions Court. Factors influencing bail decisions include the nature of the crime, evidence reliability, accused's character, and public interest.

Section 478: Section 478 for bail provision in BNSS lays down the law for regular bail. In other words, it provides the circumstances when a person gains the right to be released on bail in cases of bailable offences. Another positive aspect is the special provision regarding bail for indigent persons unable to furnish surety, to be discharged on executing bond for appearance.

In the case of *Rasiklal V/s Kishore Khanchand Wadhwani*, the Supreme Court reinforced the sense of right to bail under the provision. The Apex Court held that “As soon as it appears that the accused person is prepared to give bail, the police officer or the court before whom he offers to give bail, is bound to release him on such terms as to bail as may appear to the officer or the court to be reasonable. The right to claim bail granted by Section 436 of the Code in a bailable offence is an absolute and indefeasible right. In bailable offences there is no question of discretion in granting bail.

Section 480: Regular bail is granted after arrest, ensuring attendance at trial. Section 480 of the BNSS empowers the magistrate's court to grant regular bail for non-bailable offenses. The Section 483 of the BNSS extends this to the High Court or Sessions Court. Factors influencing bail decisions include the nature of the crime, evidence reliability, accused's character, and public interest.

The Section 480 reads as, “*When bail may be taken in case of non-bailable offence:*

(1) When any person accused of, or suspected of, the commission of any non-bailable offence is arrested or detained without warrant by an officer in charge of a police station or appears or is brought before a Court other than the High Court or Court of Session, he may be released on bail, but—

(i) such person shall not be so released if there appear reasonable grounds for believing that he has been guilty of an offence punishable with death or imprisonment for life;

(ii) such person shall not be so released if such offence is a cognizable offence and he had been previously convicted of an offence punishable with death, imprisonment for life or imprisonment for seven years or more, or he had been previously convicted on two or more occasions of a cognizable offence punishable with imprisonment for three years or more but less than seven years:

Provided that the Court may direct that a person referred to in clause (i) or clause (ii) be released on bail if such person is a child or is a woman or is sick or infirm:

Provided further that the Court may also direct that a person referred to in clause (ii) be released on bail if it is satisfied that it is just and proper so to do for any other special reason:

Provided also that the mere fact that an accused person may be required for being identified by witnesses during investigation or for police custody beyond the first fifteen days shall not be sufficient ground for refusing to grant bail if he is otherwise entitled to be released on bail and gives an undertaking that he shall comply with such directions as may be given by the Court:

Provided also that no person shall, if the offence alleged to have been committed by him is punishable with death, imprisonment for life, or imprisonment for seven years or more, be released on bail by the Court under this sub-section without giving an opportunity of hearing to the Public Prosecutor.

(2) If it appears to such officer or Court at any stage of the investigation, inquiry or trial, as the case may be, that there are not reasonable grounds for believing that the accused has committed a non-bailable offence, but that there are sufficient grounds for further inquiry into his guilt, the accused shall, subject to the provisions of section 494 and pending such inquiry, be released on bail, or, at the discretion of such officer or Court, on the execution by him of a bond for his appearance as hereinafter provided.

(3) When a person accused or suspected of the commission of an offence punishable with imprisonment which may extend to seven years or more or of an offence under Chapter VI, Chapter VII or Chapter XVII of the Bharatiya Nyaya Sanhita, 2023 or abetment of, or conspiracy or attempt to commit, any such offence, is released on bail under sub-section (1), the Court shall impose the conditions,—

(a) that such person shall attend in accordance with the conditions of the bond executed under this Chapter;

(b) that such person shall not commit an offence similar to the offence of which he is accused, or suspected, of the commission of which he is suspected; and

(c) that such person shall not directly or indirectly make any inducement, threat or promise to any person acquainted with the facts of the case so as to dissuade him from disclosing such facts to the Court or to any police officer or tamper with the evidence,

and may also impose, in the interests of justice, such other conditions as it considers necessary.

(4) An officer or a Court releasing any person on bail under sub-section (1) or sub-section (2), shall record in writing his or its reasons or special reasons for so doing.

(5) Any Court which has released a person on bail under sub-section (1) or sub-section (2), may, if it considers it necessary so to do, direct that such person be arrested and commit him to custody.

(6) If, in any case triable by a Magistrate, the trial of a person accused of any non-bailable offence is not concluded within a period of sixty days from the first date fixed for taking evidence in the case, such person shall, if he is in custody during the whole of the said period, be released on bail to the satisfaction of the Magistrate, unless for reasons to be recorded in writing, the Magistrate otherwise directs.

(7) If, at any time, after the conclusion of the trial of a person accused of a non-bailable offence and before judgment is delivered, the Court is of opinion that there are reasonable grounds for believing that the accused is not guilty of any such offence, it shall release the accused, if he is in custody, on the execution by him of a bond for his appearance to hear judgment delivered.”

Anticipatory Bail: The Section 482 of the BNSS lays for the provision for anticipatory bail. It lays the option of bail for persons yet to be arrested but apprehending arrest due to being named in a non-bailable offence. In such cases, High Court or the Session Courts have special powers to grant bail if they deem fit, while imposing conditions as specified hereunder. Eligibility depends on factors like charge severity, the applicant's background, and the risk of false charges.

The provision for anticipatory bail under BNSS reads as:

“Direction for grant of bail to person apprehending arrest:

(1) When any person has reason to believe that he may be arrested on an accusation of having committed a non-bailable offence, he may apply to the High Court or the Court of Session for a direction under this section; and that Court may, if it thinks fit, direct that in the event of such arrest, he shall be released on bail.

(2) When the High Court or the Court of Session makes a direction under sub-section (1), it may include such conditions in such directions in the light of the facts of the particular case, as it may think fit, including—

(i) a condition that the person shall make himself available for interrogation by a police officer as and when required;

(ii) a condition that the person shall not, directly or indirectly, make any inducement, threat or promise to any person acquainted with the facts of the case so as to dissuade him from disclosing such facts to the Court or to any police officer;

(iii) a condition that the person shall not leave India without the previous permission of the Court;

(iv) such other condition as may be imposed under sub-section (3) of section 480, as if the bail were granted under that section.

(3) If such person is thereafter arrested without warrant by an officer in charge of a police station on such accusation, and is prepared either at the time of arrest or at any time while in the custody of such officer to give bail, he shall be released on bail; and if a Magistrate taking cognizance of such offence decides that a warrant should be issued in the first instance against that person, he shall issue a bailable warrant in conformity with the direction of the Court under sub-section (1).

(4) Nothing in this section shall apply to any case involving the arrest of any person on accusation of having committed an offence under section 65 and sub-section (2) of section 70 of the Bharatiya Nyaya Sanhita, 2023.”

The Supreme Court in *Lavesh vs. State (NCT of Delhi)* 2012 held that “Normally, when the accused is “absconding” and declared as a “proclaimed offender”, there is no question of granting anticipatory bail. We reiterate that when a person against whom a warrant had been issued and is absconding or

concealing himself in order to avoid execution of warrant and declared as a proclaimed offender in terms of Section 82 of the Code he is not entitled to the relief of anticipatory bail.”

Special Powers of High Court/Sessions Court: The Section 483 of the BNSS grants special powers to the High Court and the Sessions Court regarding grant of bail under BNSS. It leaves scope for the two Courts to release a person on bail while imposing necessary conditions, and also improve or set aside the bail orders passed by the Magistrate. There are powers to cancel the bail granted and to order arrest and custody of the person released on bail.

Statutory Bail: It is also known as default bail. It arises when the police fail to file a report within a specified time under Section 187(2) of the BNSS. It is an inherent right of the accused if chargesheet isn't filed in the specified time, applicable regardless of the offense's nature, and can be granted by Magistrates of the First or Second Class.

Interim bail is short-term and precedes regular or anticipatory bail hearings.

Maximum Period of Detention for Undertrials: Provision for maximum period of detention for undertrials is given in the BNSS. The Section 436A of the CrPC excluded only persons who are accused of an offence punishable with death. However, the Section 481 of the BNSS expanded this category by also excluding those accused of an offence punishable with imprisonment for life. Thus, the application of this provision has been made narrower.

Reduction in Maximum Period of Detention for First Time Offender: The Section 481 of the BNSS proposes insertion of a proviso which states that a person who is a first-time offender shall be released on bail if he has undergone a third of the maximum sentence prescribed.

Exclusion of Person against whom Inquiry/Trial Pending: The Section 481 provides that where an investigation, inquiry or trial in more than one offence, or in multiple cases are pending against a person, he shall *not be released on bail* by the court.

Obligation of Prison Superintendent: A notable insertion proposed under the BNSS is Section 481(3) which places the responsibility of applying for bail under this provision upon the Superintendent of the Prison where the accused is lodged. This is especially relevant as often due to lack of effective (or any) legal aid, prisoners are denied release despite meeting the requisite criteria.

For the first time in the criminal justice system in India, a statutory obligation is sought to be imposed on the Superintendent of the Jail to ensure that the prisoners eligible for bail under this provision are given the benefit of this right.

Stages of Evidence

Once an FIR has been registered by the police, the evidence stages are mainly divided into three parts:

Recording statements under Section 180 of BNSS.

Collecting evidence.

Recording of confessions/ statements under Section 183 of BNSS before the magistrate.

Recording of Statement under Section 180: The Section 180 of BNSS deals with the examination of witnesses by police. The Investigation Officer may issue a notice under Section 179 of BNSS to the witness to attend the police station for recording of a witness statement under Section 180 of BNSS. This recorded statement is not admissible as evidence and must be proved in a trial court by adducing evidence. Further, Section 180 (3) of BNSS also provides for the possibility statement being recorded by audio-video electronic means. Imperatively, the legislature has opted for the use of a precatory rather than mandatory language and using electronic means for recording a statement remains discretionary.

Collecting Evidence: Police officers are empowered to conduct inspections of a crime scene and/ or any other required place for the collection of evidence. Evidence may include - blood remains, weapons, soil, wall scrapings, car paint, clothes, etc. In crimes where documentary evidence is relevant, the police can summon a witness/ accused under Section 94 of BNSS for the production of documents and electronic communication, including devices that contain digital evidence.

Recording of Statement by Magistrate under Section 183: It is not mandatory for the investigating agency to record Section 183 statements in all the cases, but as per the sub-clause 6, that is, Section 183(6A), in any case where offence is committed under Sections 64, 65, 66, 67, 68, 69, 70, 71, 74, 75, 76, 77, 78, 79 and 124, of BNS, the magistrate has to record a statement, under Section 183, of the person against whom the offence has been committed.

A statement recorded under Section 183 is admissible as evidence as the same is recorded before a judicial officer under oath. A statement recorded under Section 183 can be retracted by a person making the statement by way of an application before the Metropolitan/ Judicial Magistrate.

Police Chargesheet or Police Report

The BNSS has provisions for police reports and chargesheets. Under Section 193, police must file a report with a magistrate after completing their investigation. The police report or chargesheet is the final report filed by the police or investigative agency after gathering enough evidence against the accused. Chargesheets are used in trials to prove the offenses the accused is charged with. The report must include details of the custody sequence for electronic devices. Police must also inform the victim or informant of the investigation's progress within 90 days.

Closure reports: If the police find insufficient evidence against the accused, they can file a closure report under Section 189. The magistrate can accept the report and close the case.

Police diaries: Under Section 192, police officers must keep a detailed diary of their investigative actions, including witness statements and timelines. Courts can access these diaries, but the accused can't view them unless certain conditions are met.

The main provisions of Section 193 are as follows;

- (1) Every investigation under this Chapter shall be completed without unnecessary delay.*
- (2) The investigation in relation to an offence under sections 64, 65, 66, 67, 68, 70, 71 of the Bharatiya Nyaya Sanhita, 2023 or under sections 4, 6, 8 or section 10 of the Protection of Children from Sexual Offences Act, 2012 shall be completed within two months from the date on which the information was recorded by the officer in charge of the police station.*
- (3) (i) As soon as the investigation is completed, the officer in charge of the police station shall forward, including through electronic communication to a Magistrate empowered to take cognizance of the offence on a police report, a report in the form as the State Government may, by rules provide, stating—*
 - (a) the names of the parties;*

- (b) the nature of the information;*
- (c) the names of the persons who appear to be acquainted with the circumstances of the case;*
- (d) whether any offence appears to have been committed and, if so, by whom;*
- (e) whether the accused has been arrested;*
- (f) whether the accused has been released on his bond or bail bond;*
- (g) whether the accused has been forwarded in custody under section 190;*
- (h) whether the report of medical examination of the woman has been attached where investigation relates to an offence under sections 64, 65, 66, 67, 68, 70 or section 71 of the Bharatiya Nyaya Sanhita, 2023”*

5. Magistrate Taking Cognizance of a Case

Cognizance is the first step in the judicial process, when the court becomes aware of an alleged offense and decides to proceed with the case. It's a safeguard to ensure fairness and due process in criminal proceedings.

- They receive a complaint that describes the facts of the offense
- They receive a police report of the facts of the offense
- They receive information from someone other than a police officer, or from their own knowledge, that an offense has been committed

Here are some other things to know about cognizance:

- A magistrate of third class cannot take cognizance based on information or knowledge.
- If a magistrate takes cognizance based on information other than a police report or complaint, they must inform the accused that they can have the case tried by another court.
- If the accused objects to being tried by the magistrate, the case must be committed to the Court of Sessions or transferred to another magistrate.

6. Magistrate Taking Cognizance of Private Complaint

- Private Complaint under Section 223 is a formal allegation made to a magistrate to initiate legal action against a person accused of a crime. The following are the steps involved in taking cognizance of a private complaint by the magistrate.
- **Filing:** A private complaint can be made orally or in writing.
- **Examination of complainant and witnesses:** The magistrate examines the complainant and any witnesses present under oath. The examination establishes the credibility and substance of the complaint.
- **Documentation:** The substance of the examination is recorded in writing and signed by the complainant, witnesses, and the magistrate.
- **Notice to accused:** The magistrate issues a notice to the accused and gives them an opportunity to be heard. The notice should include the complaint, the sworn statement, and the statement of witnesses.
- **Cognizance:** After hearing the accused, the magistrate takes cognizance of the offense and regulates the procedure.
- **Dismissal:** : The magistrate may dismiss the complaint if there are insufficient grounds to proceed.
- **Summons or warrant:** If the magistrate finds sufficient grounds, they will issue a summons or warrant to the accused.

Private Complaint Against Public Servants: If the complaint is against a public servant, the magistrate can only order an investigation after obtaining a report from the public servant's superior. The public servant will also be given an opportunity to be heard.

Summons

A summons is a legal document issued by a court ordering a person to appear before it. Under the BNSS, summons is typically issued to the accused or witnesses to ensure their presence in court proceedings. It is designed to ensure that individuals are duly informed of the legal proceedings involving them and have an opportunity to participate.

The Section 63 to 71 of BNSS laid down the provision regarding summons. The main objective of issuing a summons is to notify individuals about the legal action and to provide them an opportunity to present their case or testimony.

The Section 63 of BNSS states that every summons issued by the court must be in writing, in duplicate, signed by the presiding officer of the court, and bear the court's seal. It shall be encrypted or any other form of electronic communication and shall bear the image of seal of the Court or digital signature.

The Section 64 of BNSS says that the summons shall, if practicable, be served personally to the individual to whom it is directed. A copy of the summons must be delivered to that person or left with someone at his residence. The serving officer must obtain the signature of the person on the original summons as an acknowledgment of receipt.

According to Section 65, summons should be served on the Director, Manager, Secretary or other officer of the company or corporation. For a firm or other association of individuals summons should be served to any partner of such firm or association, or by letter sent by registered post addressed to such partner.

Under Section 66, if the person summoned cannot be found, the summons may be served by leaving a copy with an adult member of the person's family residing with him. The person with whom the summons is so left shall, if required by the serving officer, sign a receipt thereof on the back of the other duplicate. A servant is not a member of the family within the meaning of this section.

Under Section 67, when service cannot be enforced by the methods provided in sections 64, 65 or section 66, the serving officer must affix a copy of the summons to a conspicuous part of the house or homestead where the person ordinarily resides. The court, after making such inquiries, may either declare that the summons has been duly served or order fresh service of summons.

As per Section 68, summons to a government servant should be served through the head of the office in which the person is employed. Such head shall serve the summons in the manner provided under section 64 and shall return it to the court under his signature with the endorsement required by that section. Such signature shall be evidence of due service.

As per Section 69, if a summons is to be served at a place outside the local limits of the court's jurisdiction, it should be sent to a magistrate within whose jurisdiction the person resides. The magistrate will then proceed with the service of the summons as per the provisions of the BNSS.

All summons served through electronic communication under section 64 to 71 shall be considered as duly served and a copy of such summons shall be attested and kept as proof of service of summons.

Under Section 71, a court issuing a summons to a witness may, in addition to and simultaneously with the issue of such summons direct a copy of the summons to be served by electronic communication or by registered post addressed to the witness at the place where he ordinarily resides, carries on business or personally works for gain. When an endorsement comes from postal employee that the witness refused to take delivery of the summons, the court issues summons may deem that the summons has been duly served.

Warrant

A warrant is a written order that authorizes a specific action, such as an arrest or search. While both BNSS and CrPC govern the issuance and execution of warrants, BNSS introduces flexibility in directing warrants to individuals beyond police officers, empowering even Executive Magistrates for warrant execution.

Arrest warrant: A court order that authorizes the arrest of a person

Search warrant: A court order that authorizes law enforcement to search a property for evidence. A court can issue a search warrant under Section 96 when it believes that a summoned person may not comply

- when the location of a document is unknown
- when a general search may be necessary for an inquiry or trial
- when there are limitations on which magistrates can grant search warrants for items held by postal or telegraph authorities

The BNSS provides a detailed framework for the issuance and execution of warrants.

Section 90: A warrant can be issued in lieu of or in addition to a summons if the person fails to appear after being served with the summons in time.

Section 227: A warrant can be issued to bring an accused to appear before a magistrate.

Section 82: A warrant can also be issued electronically.

Section 72: It outlines the form and duration of a warrant of arrest. Every warrant must be in writing, signed by the presiding officer, and bear the court's seal. Such a warrant remains in force until cancelled by the issuing court or executed.

Section 73: It grants the court the power to direct security in lieu of arrest. If a person executes a bond with sufficient sureties for attendance, the court may

endorse this on the warrant. The endorsed warrant allows the officer to take security and release the person from custody.

Sections 74 & 75: A warrant of arrest is ordinarily directed to one or more police officers (Section 74). However, if immediate execution is necessary and no police officer is available, BNSS allows the court to direct it to any person, and such person shall execute the warrant (Section 75).

Section 76: A warrant directed to a police officer can be executed by any other police officer whose name is endorsed upon the warrant by the officer to whom it is directed or endorsed.

Section 77: Executing officers are mandated to notify the substance of the warrant to the person to be arrested and show the warrant if required.

Section 78: Officers executing a warrant must promptly bring the arrested person before the court, subject to the provisions of Section 73 regarding security. The delay should not exceed twenty-four hours, excluding the time necessary for the journey from the place of arrest to the court.

Section 79: A warrant of arrest issued under BNSS can be executed at any place in India.

Sections 80, 81 & 82: When a warrant is to be executed outside the local jurisdiction, BNSS provides procedures for forwarding it to an Executive Magistrate or District Superintendent of Police. If the arrest is made beyond the district, the person arrested is taken before the Magistrate or Superintendent of Police of the district in which the arrest occurred.

Sections 83: The Executive Magistrate or District Superintendent, upon the person's arrest, directs the removal of the person to the court issuing the warrant. If the offence is bailable, the magistrate can give bail or security, and if non-bailable, the Chief Judicial Magistrate or Sessions Judge may release the person on bail.

Magisterial Inquiry

The Section 196 of the BNSS allows a Magistrate to conduct an inquiry into the cause of death or to investigate a rape allegation.

Cause of death: A Magistrate can conduct an inquiry into the cause of death when a person dies or disappears, or if the circumstances raise suspicion of foul play. The Magistrate can conduct this inquiry in addition to or instead of the police investigation.

Rape allegation: A Magistrate can conduct an inquiry if a woman is alleged to have been raped while in the custody of the police or under the authority of a Magistrate or Court. The Magistrate who conducts the inquiry has the same powers as they would have in conducting an inquiry into an offense. They should record the evidence they take in a manner that is appropriate to the circumstances of the case.

Trial

Trial is the examination in a court of law of the facts of a case to decide whether a person is guilty of a crime or responsible for an injury to another person. In a criminal trial, the prosecution has the burden of proving the accused's guilt beyond a reasonable doubt. The accused is not required to disprove their innocence.

Trial in Absentia: The BNSS has introduced provisions for conducting trial in absentia of certain kinds of accused. This allows the trial and pronouncement of judgment in the absence of the accused, which was not provided under the previous CrPC. Under Section 355 of the BNSS, the Judge or Magistrate may conduct a trial of an accused in his absence if it is deemed that the personal attendance of the accused is not necessary in the interests of justice, or if the accused persistently disturbs the proceedings in court. The Section 356 of the BNSS mandates the court to proceed with the trial in absentia when a person declared as a proclaimed offender has absconded to evade trial, and there is no immediate prospect of arresting him. It also specifies a mandatory waiting period of 90 days from the date of framing of the charge before commencing the trial.

Framing of Charges by Magistrate

Framing of charges is a formal process in which a magistrate or court formally accuses an individual of a crime or offense. Framing charges is a critical step in a criminal trial. The purpose of framing charges is to give the accused clear notice of the offense they are being tried for. It ensures that the accusations are clear. It also gives the accused an opportunity to defend themselves properly.

The court can add or alter charges before or during or after the trial. if the evidence suggests it. The court can frame charges even if the accused is not present, as long as the evidence supports the charges.

Section 234(2): The charge must state the offense and the law and section of law against which the offense was committed.

Language: The charge must be written in the language of the court, but it must be explained to the accused in their own language.

Definition: If there is no specific name for the offense, the definition of the offense must be clearly stated in the charge.

Previous Allegations: The accused must be informed of any previous allegations that could lead to enhanced punishment if they are found guilty.

Reading & Explaining Charge: The charge must be read and explained to the accused, who must then be asked if they plead guilty or claim to be tried. The magistrate reads and explains the charges to the accused in a language they can understand. The accused is then asked to plead guilty or not guilty.

Procedure: The magistrate reviews evidence, allegations, and arguments from both parties. They must be satisfied that there is a prima facie case that the accused committed an offense. If so, they frame a written charge against the accused. After reading the charges, if the accused pleads not guilty, the trial continues. If the accused pleads guilty, the court may proceed to pass judgment.

Discharge

The BNSS allows an accused to apply for discharge from a case within 60 days of it being committed to the sessions court. The judge will consider the case record, documents, and the submissions of both the accused and the prosecution to decide whether to discharge the accused. The judge will also record the reasons for their decision.

Here are some things to consider when applying for discharge:

- The police report and charge sheet submitted under section 173 of CrPC
- Whether the accused has been given a fair opportunity to be heard
- Whether the magistrate believes the charges are false or unsubstantiated
- Whether the police report lacks effective facts and evidence
- Whether the material facts of the case are unclear
- Whether the accusations are vague or unsubstantiated
- Whether the prosecution has not provided any witnesses

Time limit for filing discharge application: The accused can file a discharge application within 60 days from the date of committal of the case under Section 232.

Discharge by Judge: The judge will discharge the accused if they consider that there is not sufficient ground for proceeding against them. The judge will record their reasons for doing so.

Discharge by Magistrate: The magistrate can discharge the accused if they deem the charge to be groundless. The magistrate will record the reasons either physically or through audio-video electronic means.

Notice to Complainant: The magistrate can issue a 30-day notice to the complainant before discharging an accused in a "complaints case".

Powers of the Magistrate in Summons Cases: The magistrate has the power to discharge an accused in a summons cases.

Types of Trial: Various types of trial include warrant trial, summons trial, sessions trial, summary trial and plea bargaining.

Trial in Warrant Cases

In Chapter XXI of the BNSS, the procedures for trial of warrant-cases by Magistrates is dealt with, covering cases instituted on a police report and those instituted otherwise than on a police report.

A. Cases Instituted on a Police Report

1. Compliance with Section 230 (Section 261 BNSS): When an accused appears in a warrant-case instituted on a police report, the Judicial Magistrate ensures compliance with Section 230 BNSS. The Section 230 requires that the Magistrate provide copies of certain documents to the accused and victim in cases that start with a police report. These documents must be provided within 14 days after the production or appearance of accused in the court.

2. Discharge of Accused (Section 262 BNSS): the accused has the right to apply for discharge within 60 days from the framing of charges. If the Magistrate deems the charge groundless after due consideration and hearing, the accused is discharged, and the reasons are recorded.

3. Framing of Charge (Section 263 BNSS): If there is ground for presuming the accused committed an offence, the Magistrate frames a written charge within sixty days from the first hearing on charge. The accused is then asked to enter a plea.

4. Conviction on Plea of Guilty (Section 264 BNSS): When the accused pleads guilty, the Magistrate may, at their discretion, record the plea and convict the accused.

5. Evidence for Prosecution (Section 265 BNSS): If the accused refuses to plead or the Magistrate does not convict based on a guilty plea, a date is fixed for the examination of witnesses. The Magistrate may permit cross-examination deferral and allow the use of audio-video electronic means for witness testimony.

6. Evidence for Defense (Section 266 BNSS): The accused enters the defense, and if written statements are submitted, the Magistrate files them. The Magistrate may issue processes for witness attendance or document production.

B. Cases Instituted otherwise than on Police Report

1. Evidence for Prosecution (Section 267 BNSS): In warrant-cases instituted otherwise than on a police report, the Magistrate hears the prosecution and takes evidence in support of it.

2. Discharge of Accused (Section 268 BNSS): If, after taking evidence, the Magistrate finds no case against the accused, he may discharge the accused. The Magistrate retains the authority to discharge the accused at any previous stage if the charge is deemed groundless.

3. Procedure Where Accused is Not Discharged (Section 269 BNSS): If the Magistrate finds grounds for presuming the accused committed an offence, he frames a written charge. The accused is asked to plead guilty or enter a defense. If the accused refuses to plead, the Magistrate proceeds with cross-examination and re-examination of prosecution witnesses.

C. Conclusion of Trial:

1. Acquittal or Conviction (Section 271 BNSS): If the Magistrate finds the accused not guilty, an order of acquittal is recorded. In case of a guilty verdict, the Magistrate, after hearing the accused on the question of sentence, passes sentence according to the law.

2. Absence of Complainant (Section 272 BNSS): When proceedings are instituted upon a complaint, and the complainant is absent, the Magistrate, after giving thirty days' time, may discharge the accused if the offence is compoundable or not cognizable.

3. Compensation for Accusation Without Reasonable Cause (Section 273 BNSS): In cases instituted upon complaint or information, the Magistrate, upon discharging or acquitting the accused, may order the complainant to pay compensation if there was no reasonable ground for the accusation.

Trial in Summons Cases

Summons Trial has a separate and dedicated chapter under BNSS. In this article, we will examine the key sections of BNSS related to Summons trial, detailing on the trial process, plea options, and the powers of the Magistrate.

I. Substance of Accusation and Plea Options (Sections 274-276): The Section 274 BNSS emphasizes the importance of stating the particulars of the offence when the accused appears before the Magistrate. Plea options include pleading guilty or presenting a defense. It should be remembered that, if the Magistrate deems the accusation groundless, the accused may be released with a discharge effect.

II. Conviction on Plea of Guilty (Section 275): The Section 275 BNSS addresses situations where the accused pleads guilty. The Magistrate, at their discretion, may record the plea and convict the accused accordingly.

III. Conviction in Absence of Accused in Petty Cases (Section 276): For cases where the accused desires to plead guilty without appearing, Section 276 BNSS provides a mechanism. The accused can transmit a plea and fine to the Magistrate. The Magistrate, exercising discretion, may convict the accused in their absence, adjusting the fine accordingly.

IV. Procedure When Not Convicted (Section 277): The Section 277 BNSS outlines the steps when the Magistrate does not convict the accused. It involves hearing both the prosecution and the accused, summoning witnesses if necessary, and ensuring reasonable expenses are deposited before witness summoning.

V. Acquittal or Conviction (Section 278 BNSS): Upon evaluating the evidence and hearing the accused, the Magistrate must either record an order of acquittal or, if finding the accused guilty, pass a sentence according to law.

VI. Non-Appearance or Death of Complainant (Section 279): The Section 279 BNSS deals with scenarios where the complainant does not appear on the appointed day. The Magistrate may acquit the accused, but exceptions exist if the complainant is represented by a pleader or if personal attendance is deemed unnecessary.

VII. Withdrawal of Complaint (Section 280): The Section 280 BNSS allows a complainant to withdraw their complaint before a final order is passed, leading to the acquittal of the accused against whom the complaint is withdrawn.

VIII. Power to Stop Proceedings (Section 281): The Section 281 BNSS grants the Magistrate the authority to stop proceedings at any stage for recorded reasons, leading to either an acquittal judgment or the release of the accused.

IX. Power of Court to Convert Summons-Cases into Warrant-Cases (Section 282 BNSS):

In certain circumstances during a summons-case trial, the Magistrate, if in the interest of justice, may convert it into a warrant-case. This allows for a re-hearing following the procedure outlined in BNSS for warrant-cases.

Trial Before a Court of Session

Section 248 : In every trial before a Court of Session, the prosecution shall be conducted by a Public Prosecutor.

Section 249: The prosecutor shall open his case by describing the charge brought against the accused and stating by what evidence he proposes to prove the guilt of the accused.

Section 250: The accused may prefer an application for discharge within a period of sixty days from the date of committal under section 232.

If, upon consideration of the record of the case, the Judge considers that there is not sufficient ground for proceeding against the accused, he shall discharge the accused and record his reasons for so doing.

Under Section 251, if the Judge is of opinion that there is ground for presuming that the accused has committed an offence which is not exclusively triable by the Court of Session, he may, frame a charge against the accused and, by order, transfer the case for trial to the Chief Judicial Magistrate, or any other Judicial Magistrate of the first class and direct the accused to appear before that court.

If it is exclusively triable by the Court, he shall frame in writing a charge against the accused within a period of sixty days from the date of first hearing on charge.

If the Judge frames any charge, the charge shall be read and explained to the accused present either physically or through electronic means and the accused shall be asked whether he pleads guilty of the offence charged or claims to be tried.

Section 252: If the accused pleads guilty, the Judge shall record the plea and may, in his discretion, convict him thereon.

Section 253: If the accused refuses to plead, or does not plead, or claims to be tried or is not convicted under section 252, the Judge shall fix a date for the examination of witnesses. On the application of the prosecution, he issues process for compelling the attendance of any witness or the production of any document or other thing.

Section 254: On the date so fixed, the Judge shall proceed to take all such evidence as may be produced in support of the prosecution:

Section 255: If, after taking the evidence for the prosecution, examining the accused and hearing the prosecution and the defence on the point, the Judge considers that there is no evidence that the accused committed the offence, the Judge shall record an order of acquittal.

Section 256: Where the accused is not acquitted under section 255, he shall be called upon to enter on his defence and adduce any evidence he may have in support thereof.

Section 257 When the examination of the witnesses for the defence is complete, the prosecutor shall sum up his case and the accused or his pleader

Section 258: After hearing arguments and points of law (if any), the Judge shall give a judgment in the case, as soon as possible, within a period of thirty days from the date of completion of arguments, which may for specific reasons extend to a period of sixty days.

If the accused is convicted, the Judge shall, unless he proceeds in accordance with the provisions of section 401, hear the accused on the questions of sentence, and then pass sentence on him according to law.

Section 260: A Court of Session taking cognizance of an offence under sub-section (1) of section 222 shall try the case in accordance with the procedure for the trial of warrant-cases instituted otherwise than on a police report before a Court of Magistrate:

Every trial under this section shall be held in camera if either party thereto so desires or if the Court thinks fit so to do.

Summary Trial

The summary trials are expedited legal proceedings designed to resolve minor offences quickly and efficiently. Unlike regular trials, which can be lengthy and complex, summary trials focus on swift justice, allowing for a more streamlined process. The rules governing evidence and witness testimonies are less severe, facilitating faster adjudication. The BNSS provides specific provisions under

Sections 283–288 to guide the conduct of summary trials. These provisions reflect an effort to ensure swift justice while maintaining procedural integrity.

Section 283: Authority to Conduct Summary Trials

- **Magistrates Empowered:** Chief Judicial Magistrates and Magistrates of the first class can summarily try specific offences.
- **Eligible Offences:** Theft under Sections 301, 303, or 304 of the Bharatiya Nyaya Sanhita, where the stolen property value does not exceed ₹20,000.
- Receiving or concealing stolen property under Section 315, with the value capped at ₹20,000.
- Offences under Section 330, including criminal intimidation under Section 349 and insult with intent to provoke under Section 350.
- Abetment and attempts related to these offences.

Section 284: Special Powers for Second-Class Magistrates

High Courts may authorize Magistrates of the second class to try offences summarily, limited to cases punishable by fines or imprisonment of up to six months.

Section 285: Simplified Trial Procedure

- Trials adopt the procedure for summons cases with exceptions specific to summary trials.
- No imprisonment exceeding three months can be imposed under summary trial convictions.

Section 286: Record Keeping

The Magistrate must maintain essential case details, such as:

- the serial number of the case;
- the date of the commission of the offence;
- the date of the report or complaint;
- the name of the complainant (if any);
- the name, parentage and residence of the accused;
- the offence complained of and the offence (if any) proved, and in cases coming under clause (i), clause (ii) or clause (iii) of sub-section (1) of

section 283, the value of the property in respect of which the offence has been committed;

- the plea of the accused and his examination (if any);
- the finding;
- the sentence or other final order;
- the date on which proceedings terminated.

Section 287: Judgment Requirements

- For contested cases, the Magistrate must record the evidence's substance and provide concise reasoning for the judgment.

Section 288: Language of record and Judgment

- Every such record and judgment shall be written in the language of the Court.
- The High Court may authorize any Magistrate empowered to try offences summarily to prepare the aforesaid record or judgment or both by means of an officer appointed in this behalf by the Chief Judicial Magistrate, and the record or judgment so prepared shall be signed by such Magistrate.

Advantages of Summary Trials

- **Speedy Justice:** Summary trials significantly reduce the time taken to resolve cases, addressing delays that plague the judicial system.
- **Reduced Backlog:** By resolving minor cases efficiently, they free up judicial resources for more serious matters.
- **Accessibility:** These trials make justice more attainable for individuals involved in minor offences, ensuring proportional responses to less severe crimes.

Plea Bargaining

Plea bargaining is a legal process where an accused individual in a criminal case gives consent to plead guilty to a lesser charge or accepts a reduced sentence in return for certain concessions from the prosecutor or the court. The concept of plea bargaining was first implemented in India in 2006.

As per Section 289 of the BNSS, plea bargaining is permissible after a charge sheet has been filed under Section 193 BNSS or when a magistrate has taken cognizance of the offence. However, it is prohibited for offences that carry a

death penalty, life imprisonment, or a prison term longer than seven years. It will not apply when such offence affects the socio-economic condition of the country or has been committed against a woman or a child.

In plea-bargaining, victims may have the opportunity to express their views regarding the plea agreement and secure restitution for their losses.

Section 290: It gives establishes a specific timeframe for the accused to submit a plea-bargaining application. The application must be filed within thirty days of the charges being officially framed by the court.

If the Court is convinced that the application was indeed filed voluntarily by the accused, it will grant a period not exceeding 60 days for the Public Prosecutor or the complainant and the accused to negotiate a mutually agreeable resolution of the case.

This resolution may include the accused providing compensation to the victim as well as covering other expenses related to the case. Following this, the Court will set a date for the next hearing.

If the Court determines that the application was submitted involuntarily by the accused or that he has previously been convicted by a Court for the same offence, it will continue to proceed according to the provisions of BNSS.

Section 291: In cases initiated based on a police, the Court shall issue a notice to the Public Prosecutor, the investigating police officer, the accused, and the victim, inviting them to participate in a meeting aimed at achieving a satisfactory resolution of the case.

In cases that are not initiated based on a police report, the Court must notify both the accused and the victim to attend a meeting aimed at finding a satisfactory resolution. The Court is also responsible for guaranteeing that this resolution process is conducted voluntarily by all parties involved in the meeting.

Section 292: In a meeting conducted under section 291 of the BNSS, if a satisfactory resolution of the case has been achieved, the Court is required to prepare a report detailing this resolution. This report must be signed by the presiding officer of the Court and all participants in the meeting.

If a satisfactory resolution has not been reached, the Court will document this observation and continue proceedings in accordance with the provisions of this Sanhita, starting from the stage at which the application was filed under subsection (1) of section 290 BNSS.

Punishment: When a satisfactory resolution of the case has been established in accordance with section 292 of BNSS, the Court shall proceed to dispose of the case. The Court will award compensation to the victim based on the resolution under section 292 and will hear the parties regarding the amount of punishment. The accused may be released on probation for good conduct or after a warning in line with section 401 of BNSS (360 CrPC), or managed under the provisions of the Probation of Offenders Act, 1958, or any other relevant law currently in effect.

After hearing the parties, if the Court believes that Section 401 of BNSS (360 CrPC) or the provisions of the Probation of Offenders Act, 1958, or any relevant current law apply to the accused, it may choose to release the accused on probation or grant the advantages of any applicable law.

Section 293(c) of the BNSS states that after listening to the parties, if the Court determines that the law stipulates a minimum punishment for the offense committed by the accused, it has the authority to impose a sentence of half of that minimum punishment. Additionally, if the accused is a first-time offender with no prior convictions, the Court may reduce the sentence to one-fourth of the minimum punishment.

The Section 293(d) of the BNSS stipulates that if, after a hearing, the Court determines that the offence committed by the accused does not fall under the above said categories, it may impose a sentence of one-fourth of the applicable punishment for the offence. Additionally, if the accused is a first-time offender with no prior convictions, the Court may reduce the sentence to one-sixth of the applicable punishment for the offence.

According to Section 295 of the BNSS (Section 265G CrPC), the ruling issued by the Court under this Section is conclusive, and no appeals against such a ruling can be filed in any Court, except for a Special Leave Petition under Article 136 and Writ Petitions under Articles 226 and 227 of the Constitution.

Judgement

The BNSS lays down provisions for the pronouncement of judgments. The Section 392 of the BNSS outlines the timeline for pronouncing judgments in criminal trials.

The presiding officer in a Criminal Court of original jurisdiction must deliver the judgment immediately after the trial's termination or within 45 days, with notice to the parties.

The judgment can be delivered by delivering the whole content, reading out the entire judgment, or reading out the operative part and explaining the substance in a language understood by the accused or their advocate.

Recording and Documentation: When the judgment is delivered, Section 392(2) requires the presiding officer to have it taken down in shorthand if delivered by delivering the whole judgment. This transcript must be signed, dated, and every page endorsed. If the judgment or its operative part is read out, it needs to be dated, signed, and, if not written by the presiding officer, every page must bear their signature.

Accessibility and Transparency: To ensure accessibility, Section 392(4) mandates that a copy of the entire judgment or its immediate availability must be provided to the parties or their advocates free of cost.

There is also a provision encouraging the court to upload the copy of the judgment on its portal within seven days from the date of judgment.

Accused's Presence and Notification: Sections 392(5) and (6) address the accused's presence during judgment pronouncement. If in custody, the accused must be brought up to hear the judgment either in person or through audio-video electronic means. If not in custody, attendance is generally required, except in specific circumstances.

Special Provisions and Non-Invalidation: The Section 392(7) asserts that the absence of any party or their advocate on the day or place notified for judgment delivery does not invalidate the judgment. It emphasizes that the judgment remains valid despite such absence, ensuring that procedural nuances do not compromise the validity of the court's decision.

Judgment Contents and Formalities: The Section 393 of the BNSS details the essential components of a judgment under the BNSS. Every judgment must be written in the language of the court and contain points for determination, decision, reasons, and specifics about the offense, section, and punishment. If the conviction is for an offense punishable with death, special reasons for such sentence must be stated.

The Section 394 mandates that the State Government, in coordination with the Central Government, prepares a scheme to provide funds for compensating

victims or their dependents who have suffered loss or injury due to the crime and require rehabilitation.

Compensation to Victims from fine: The Section 395 of the BNSS talks about the provision of compensating victims using fines imposed as part of sentences. The court may order the fine recovery to be applied towards defraying prosecution expenses, compensating the victim for loss or injury, or paying compensation to those entitled under the Fatal Accidents Act, 1855, in cases of offenses leading to death.

Victim Compensation Scheme (Section 396): Every State Government in co-ordination with the Central Government shall prepare a scheme for providing funds for the purpose of compensation to the victim or his dependents who have suffered loss or injury as a result of the crime and who require rehabilitation.

Whenever a recommendation is made by the Court for compensation, the District Legal Service Authority or the State Legal Service Authority shall decide the quantum of compensation to be awarded under the scheme.

If the trial Court, at the conclusion of the trial, is satisfied, that the compensation awarded under section 395 is not adequate for such rehabilitation, or where the cases end in acquittal or discharge and the victim has to be rehabilitated, it may make recommendation for compensation under Section 396.

If the offender is not traced or identified, but the victim is identified, and where no trial takes place, the victim or his dependents may make an application to the State or the District Legal Services Authority for award of compensation.

On receipt of such recommendations or on the application, the State or the District Legal Services Authority shall, after due enquiry award adequate compensation by completing the enquiry within two months.

To alleviate the suffering of the victim, the Authority may order for immediate first-aid facility or medical benefits to be made available free of cost on the certificate of the police officer not below the rank of the officer in charge of the police station or a Magistrate of the area concerned, or any other interim relief as the appropriate authority deems fit.

The compensation payable by the State Government under this section shall be in addition to the payment of fine to the victim under section 65, section 70(1) and section 124 of BNSS.

Treatment of Victims: Section 397 of the BNSS mandates the immediate provision of first-aid or medical treatment to victims by all hospitals, public or private, free of cost.

Victim Compensation Scheme: Section 398 of the BNSS mandates that every State Government prepares and notifies a Witness Protection Scheme, recognizing the need to protect the witnesses who come forward to testify.

Compensation for Wrongful Arrest: The Section 399 of BNSS introduces a mechanism to address wrongful arrests. If a person is arrested without sufficient grounds, the court may award compensation to the wrongfully arrested individual, not exceeding one thousand rupees.

Costs in Non-Cognizable Cases: The Section 400 of BNSS allows a court dealing with non-cognizable offenses to order the accused to pay costs to the complainant, covering various expenses incurred during the prosecution. In case of default, the accused may face simple imprisonment for a period not exceeding 30 days.

Release on Probation and Other Alternatives: The Section 401 of BNSS provides the court with discretion to release offenders on probation of good conduct or after admonition under specific circumstances.

Record of Special Reasons: The Section 402 of the BNSS requires the court to record special reasons if it chooses not to deal with an accused person under probationary provisions or applicable juvenile justice laws.

Limitations on Alteration of Judgment: Section 403 of BNSS imposes limitations on altering or reviewing judgments once signed, restricting such alterations to correcting clerical or arithmetical errors. This ensures the finality and stability of judgments.

Filing and Forwarding of Judgments: The Sections 405 and 406 of BNSS detail the procedural aspects of judgment documentation. The original judgment is filed with the record of proceedings, and if recorded in a different language, a translation is added.

Appeals

Appeals provide individuals a mechanism to challenge judgments or orders they find unsatisfactory.

1. Right to Appeal: The Section 413 says that no appeal shall lie from any judgment or order of a Criminal Court except as provided for by the BNSS or any other prevailing law.

However, inherent right of appeal is granted to victims against orders acquitting the accused, convicting for a lesser offense, or imposing inadequate compensation.

2. Supreme Court's Authority: The Section 415 outlines the scenarios in which an appeal may be made directly to the Supreme Court.

3. Appellate Jurisdiction of High Courts: The Section 416 defines the appellate jurisdiction of High Courts, specifying the types of cases over which they have authority.

4. Restrictions on Appeals: The Section 417 imposes certain limitations on the right to appeal, categorically specifying cases where no appeal lies.

5. Appeal Procedure: The Section 423 of BNSS details the procedure for filing an appeal, emphasizing the importance of a written petition accompanied by a copy of the judgment or order being appealed against.

6. Suspension of Sentence and Bail: The Section 430 of BNSS provides provision for the suspension of the execution of a sentence pending appeal. It also grants the Appellate Court the authority to release the appellant on bail, ensuring that individuals are not unduly subjected to incarceration during the appeal process.

7. Finality of Appellate Judgments: The Section 434 of BNSS emphasizes the finality of judgments and orders passed by Appellate Courts, instilling legal certainty in the system.

8. Abatement of Appeals on Death: The Section 435 of BNSS introduces the concept of abatement, concluding appeals upon the death of the accused or appellant. However, recognizing the gravity of certain cases, it allows near relatives to seek leave to continue the appeal.

Revision

A revision petition is an application made to a High Court to correct mistakes made by subordinate courts. The High Court of a State has the power to supervise the work of subordinate courts under its jurisdiction

Sections 438-442: Revision proceedings can be instituted under these sections to highlight any illegality, impropriety, or incorrectness in an order. A revision can be maintained against an order of maintenance or interim maintenance.

Section 439: The High Court or Sessions Judge can examine records and order further inquiry into dismissed complaints or discharged cases under this section.

Section 440: The Sessions Judge exercises revision powers similar to the High Court under this section.

A revision petition is an application made to a High Court to correct mistakes made by subordinate courts. The High Court of a State has the power to supervise the work of subordinate courts under its jurisdiction

Reference

The BNSS has a section that deals with references to the High Court:

Section 436: When a court is satisfied that a case involves a question about the validity of an Act, Ordinance, or Regulation, it can refer the case to the High Court for a decision.

The court can make a reference if it believes that a particular Act, Ordinance, or Regulation is invalid or inoperative, but the High Court or the Supreme Court has not yet declared it so far.

Confirmation of Death Sentences

The BNSS has several provisions for confirming sentences.

Section 407: This section requires that the High Court must confirm any death sentence passed by the Court of Session. The sentence cannot be executed until the High Court confirms it.

Section 409: It outlines the powers of the High Court when a case is submitted under Section 407. The High Court can:

Confirm the original sentence

- Impose a different sentence
- Annul the conviction and issue a new conviction
- Order a fresh trial
- Acquit the accused

Section 412: This section gives procedure for cases submitted to the High Court for the confirmation of a death sentence. The High Court's proper officer must send a copy of the order to the Court of Session. The copy must be sent either

physically or electronically and must carry the seal of the High Court and the officer's signature.

Execution, Suspension, Remission, and Commutation of Sentences

The BNSS includes provisions for the execution, suspension, remission, and commutation of sentences.

- **Section 474:** This section provides the power to commute a sentence. For example, a death sentence can be commuted to life imprisonment.
- **Section 475:** It restricts the power to commute or remit sentences in certain cases. For example, if a person is sentenced to life imprisonment for an offense that could also result in the death penalty, they must serve at least 14 years in prison before being released.
- **Section 477:** It gives the State Government the power to commute or remit sentences or offenses related to the Central Government.
- **Section 453:** It deals with the execution of orders passed under section 409.
- **Section 454:** It deals with the execution of death sentences passed by the High Court.
- **Section 455:** It deals with postponing the execution of a death sentence if the defendant appeals to the Supreme Court.
- **Section 456:** It deals with commuting the death sentence of a pregnant woman.
- **Section 464:** It deals with suspending the execution of an imprisonment sentence.

Pardoning Power

The Constitution of India granted the power to the President of India (Article 72) and the Governor of the State (Article 161) to grant pardon or commute sentences. In the Supreme Court's ruling in *Maru Ram vs. Union of India* 1981, it was established that the President must act based on the Council of Ministers' advice in mercy petitions.

Under BNSS Section 472(1), convicts can file mercy petitions within a period of 30 days from the date on which the Superintendent of the Jail,— (i) informs him about the dismissal of the appeal, review or special leave to appeal by the

Supreme Court; or (ii) informs him about the date of confirmation of the sentence of death by the High Court and the time allowed to file an appeal or special leave in the Supreme Court has expired.

The convicts can petition the Governor and President based on dismissal of appeals or confirmation of sentences. • For cases with multiple convicts, they all must file petitions within 60 days.

The Section 472(7) states that the President's decisions on mercy petitions are final. The courts cannot question or review the grounds for President's pardons or commutations.

Procedure: The Central Government shall, on receipt of the mercy petition seek the comments of the State Government and consider the petition along with the records of the case. The Government shall make recommendations to the President within 60 days.

Whenever an application is made to the appropriate Government for the suspension or remission of a sentence, the appropriate Government may require the presiding Judge of the Court before or by which the conviction was had or confirmed, to state his opinion as to whether the application should be granted or refused, together with his reasons for such.

When there is more than one convict in a case, the petitions shall be decided by the President together in the interests of justice. No time limit is specified for the President's decision.

Upon receipt of the order of the President on the mercy petition, the Central Government shall within 48 hours, communicate the same to the Home Department of the State Government and the Superintendent of the jail or officer in charge.

Maintenance of Wife, Children and Parents

The Section 144 allows a person to claim maintenance from someone who has the means, but is not taking care of their dependents:

Dependents: A person's wife, children, parents, or other dependents who cannot support themselves

Claimant: A Judicial Magistrate of First Class can be approached to claim maintenance

Order: If the Magistrate is satisfied that the claimant is entitled to maintenance, he can order the person to pay a monthly allowance.

Amount: The Magistrate will decide the amount of the allowance to be given to the dependents.

Changes: The Magistrate can change the amount if the circumstances of the person paying or receiving the allowance change,

Enforcement: If the person does not comply with the order, the Magistrate can issue a warrant to levy the amount due and may also imprison the person for up to one month.

Some other details about maintenance under BNSS include:

- Men can also be entitled to maintenance, such as a minor son, a son who has reached the age of majority but is unable to support himself, or a father who is unable to support himself.
- A major unmarried girl is also entitled to maintenance from her parents.
- A revision petition can be filed against a maintenance order if the Magistrate's order is bad in law or if the Magistrate overlooked any of the ingredients of the Section 144 of the BNSS.

Security for Keeping the Peace and for Good Behaviour

The provision of "Security for Keeping the Peace and for Good Behaviour" has long been established under Indian law to ensure public order and individual safety. These provisions have recently been updated under the BNSS from Sections 125 to 143, marking a shift toward a more comprehensive and effective legal framework.

Section 129 {Security for good behaviour from habitual offenders}: When an Executive Magistrate receives information that there is within his local jurisdiction a person who-

- (a) is by habit a robber, house-breaker, thief, or forger; or
- (b) is by habit a receiver of stolen property knowing the same to have been stolen; or
- (c) habitually protects or harbours thieves, or aids in the concealment or disposal of stolen property; or

(d) habitually commits, or attempts to commit, or abets the commission of, the offence of kidnapping, abduction, extortion, cheating or mischief, or any offence punishable under Chapter X or under section 178, section 179, section 180 or section 181 of that Sanhita; or

(e) habitually commits, or attempts to commit, or abets the commission of, offences, involving a breach of the peace; or

(f) habitually commits, or attempts to commit, or abets the commission of any offence under one or more of the following Acts such as the Drugs and Cosmetics Act, 1940, the Foreigners Act, 1946, the Essential Commodities Act or any offence punishable under any other law providing for the prevention of hoarding or adulteration of food or drugs

(g) is so desperate and dangerous as to allow him to live in society without security is dangerous to the community,

such Magistrate may require such person to show cause why he should not be ordered to execute a bail bond, for his good behaviour for such period, not exceeding three years, as the Magistrate thinks fit.

Section 130: When a Magistrate acting under section 126, section 127, section 128 or section 129 shall make an order in writing, setting forth the substance of the information received, the amount of the bond to be executed, the term for which it is to be in force and the number of sureties.

Section 132: Whenever it appears to such Magistrate, upon the report of a police officer or upon other information, that there is reason to fear the commission of a breach of the peace, and that such breach of the peace cannot be prevented otherwise than by the immediate arrest of such person, the Magistrate may at any time issue a warrant for his arrest.

Releasing an Offender on Probation of Good Conduct

The Section 401 of the BNSS allows a court to release an offender on probation instead of immediately sentencing them:

- If the offender is under 21 years of age and is convicted of a crime punishable by a fine or up to seven years in prison
- If the offender is under 21 years of age or a woman and convicted of a crime that is not punishable by death or life imprisonment, and they have no previous convictions

The court will consider the offender's: age, character, background, and circumstances of the offense.

If the court decides to release the offender on probation, they may:

- Require the offender to enter into a bond
- Require the offender to appear for sentencing when called upon
- Require the offender to maintain good behaviour for up to three years

The court must record special reasons if it chooses not to deal with an accused person under probationary provisions.

Attachment of property

Property that is derived or obtained, directly or indirectly, as a result of criminal activity is referred to as proceeds of crime. The CrPC had provided police the power to seize property when it is: (i) alleged or suspected to have been stolen, or (ii) found under circumstances creating suspicion of commission of any offence. This was applicable only to movable properties. The BNSS extended this to immovable properties as well. Provisions on the treatment of seized property in BNSS differ from the provisions in the Prevention of Money Laundering Act, 2002 (PMLA). The PMLA provides for confiscation of property derived from money laundering in relation to specified offences.

Certain safeguards provided under PMLA are not available under the BNSS. Under PMLA, attachment is provisional in nature for up to 180 days. A notice period of at least 30 days needs to be given to show cause why an attachment order must not be made. During the attachment, enjoying of immovable property cannot be denied as per PMLA provisions. But the BNSS does not provide a time limit up to which property can be attached. It provides a show cause notice of 14 days to be given to the accused.

Irregular Proceedings

The Chapter 37 of BNSS covers irregular proceedings. Some of the sections in this chapter include:

- Section 506: Irregularities that do not invalidate proceedings
- Section 507: Irregularities that do invalidate proceedings
- Section 508: Proceedings in the wrong place

- Section 509: Non-compliance with the provisions of section 183 or section 316
- Section 510: The effect of an omission to frame a charge, or the absence of a charge, or an error in the charge
- Section 511: Finding or sentence when reversible due to an error, omission, or irregularity
- Section 512: Defect or error that does not make an attachment unlawful

Section 508: If any Magistrate not empowered by law to do any of the following things, namely:—

1. to issue a search-warrant under section 97;
2. to order, under section 174, the police to investigate an offence;
3. to hold an inquest under section 196;
4. to issue process under section 207, for the apprehension of a person within his local jurisdiction who has committed an offence outside the limits of such jurisdiction;
5. to take cognizance of an offence under clause (a) or clause (b) of sub-section (1) of section 210;
6. to make over a case under sub-section (2) of section 212;
7. to tender a pardon under section 343;
8. to recall a case and try it himself under section 451; or
9. to sell property under section 506 or section 507, erroneously in good faith does that thing, his proceedings shall not be set aside merely on the ground of his not being so empowered.

Section 509: If any Magistrate, not being empowered by law in this behalf, does any of the following things, namely:—

1. attaches and sells property under section 85;
2. issues a search-warrant for a document, parcel or other things in the custody of a postal or telegraph authority;
3. demands security to keep the peace;
4. demands security for good behaviour;
5. discharges a person lawfully bound to be of good behaviour;

6. cancels a bond to keep the peace;
7. makes an order for maintenance;
8. makes an order under section 152 as to a local nuisance;
9. prohibits, under section 162, the repetition or continuance of a public nuisance;
10. makes an order under Part C or Part D of Chapter XI;
11. takes cognizance of an offence under clause (c) of sub-section (1) of section 210;
12. tries an offender;
13. tries an offender summarily;
14. passes a sentence, under section 364, on proceedings recorded by another Magistrate;
15. decides an appeal;
16. calls, under section 438, for proceedings; or
17. revises an order passed under section 493, his proceedings shall be void.

Part 2

A. Juvenile Justice (Care and Protection) Act, 2015

Historical Background: The Apprentices Act, 1850, was the first law enacted in India dealing with children in conflict with the law. This law allowed the courts to treat children who had committed petty crimes as apprentices instead of sending them to prisons.

The second law that dealt with juvenile offenders was the Reformatory Schools Act, 1876.

The Indian Jails Committee (1919-20) also made some recommendations with regard to children in conflict with the law.

In 1960, the Children Act was passed to provide for the care, maintenance, protection, welfare, education, training, trial and rehabilitation of neglected and delinquent children.

The Juvenile Justice Act, 1986: This was the first central law on juvenile justice that provided a uniform law for the whole country in this respect.

In 1992, the government of India ratified the United Nations Convention on the Rights of the Child which made it expedient to have a law that conformed to the standards of the Convention.

Hence, the JJA, 1986 was repealed and the Juvenile Justice (Care and Protection of Children) Act, 2000 was enacted.

The government amended the existing law dealing with children in conflict with the law citing implementational issues and procedural delays with adoption, etc. The government also cited figures from the National Crime Records Bureau to show that there had been a hike in the number of juveniles committing crimes, particularly in the age bracket of 16 to 18 years.

In the 2000 Act, there was no distinction between children in conflict with the law and children in need of care and protection. The amended act changed that.

The 2000 Act also did not have provisions for the reporting of abandoned or lost children to the appropriate authorities, in order to ensure their protection and care.

After taking into account all these shortcomings and after the public outrage over the infamous Delhi gang-rape case (Nirbhaya Case) in 2012 in which one of the offenders was a 17-year-old boy, the Parliament replaced 2000 Act with Juvenile Justice (Care and Protection of Children) Act, 2015.

This legislation strives to achieve a balance between child rights and justice by not sentencing juveniles to the death sentence and life imprisonment.

Introduction to Juvenile Justice Act 2015

The JJA, 2015 introduced many changes to the existing law so as to make the juvenile justice system more responsive to the changing circumstances of society. The Act seeks to hold the child accused of crime accountable, not through punishments, but through counselling.

- The Act amended in 2015 changed the nomenclature of ‘juvenile’ to ‘child’ and ‘child in conflict with the law’.
- The Act defines orphaned, surrendered and abandoned children.
- It also gives definitions for petty, serious and heinous crimes by children.
 - A heinous offence is one that attracts a maximum punishment of 7 years imprisonment under any existing law.

- A serious offence is one that attracts imprisonment of 3 to 7 years.
- A petty offence is one that attracts a maximum of 3 years imprisonment.

Key Features of 2015 Act

- Distinguishes between children in conflict with the law and children in need of care and protection.
- Provides for minors in the age group of 16 to 18 years to be treated as adults in the case of heinous crimes.
- Gives the Central Adoption Resource Authority (CARA) statutory status.
- Provides mandatory registration of children's homes
- Setting up of Child Welfare Committee
- Setting up of Juvenile Justice Board
- Adopts child-friendly approach

Juvenile Justice Board

- Juvenile Justice Board (JJB) is an institutional body constituted under Section 4 of Juvenile Justice Act, 2015.
- The State Government constitute one or more Juvenile Justice Boards for the districts.
- The Boards are constituted to deal with the matters where “Child in conflict with law”.
- The constitution of the board and the procedure to be followed by the board is prescribed under the JJ Act.

Constitution of JJB

- The Section 4 of JJ Act deals with the Constitution of Juvenile Justice Board (JJB).
- A Board shall consist of a Metropolitan Magistrate or a Judicial Magistrate of First Class not being Chief Metropolitan Magistrate or Chief Judicial Magistrate referred to as Principal Magistrate with at least

three years' experience and two social workers of whom at least one shall be a woman

- A social worker shall be appointed as a member of the Board who has been actively involved in health, education, or welfare activities pertaining to children for at least seven years or a practicing professional with a degree in child psychology, psychiatry, sociology or law.

Powers of JJB

- In case of a heinous offence alleged to have been committed by a child, who has completed or is above the age of sixteen¹⁶ years, the Board shall conduct a preliminary assessment under Section 15 with regard to his mental and physical capacity to commit such offence, ability to understand the consequences of the offence and the circumstances in which he allegedly committed the offence, and may pass an order.
- It can hold inquiry under Section 17 and Section 18 of JJ Act and pass order as per these sections.

Functions of JJB

- To inform the involvement of guardian of the children in the matter.
- During investigation, arrest and other proceedings, the rights of the children must not be compromised.
- The child must have access to legal aid.
- Passing of final order that resolves the issue and includes a personalized care plan for the child's rehabilitation, as well as any necessary follow-up by the probation officer, the district child protection unit, or a representative of a non-governmental organization.
- To investigate to determine who is qualified to care for children who violate the law.
- To undertake at least one inspection, visit per month at residential facilities for children in trouble with the law and to make recommendations for the District Child Protection Unit and the State Government regarding actions to be taken to improve the quality of services.

Procedure for dealing with Child in Conflict with Law

As per the Act, the board is required to adjudicate cases within a maximum period of four months. However, in severe cases, the board may extend this period to six months.

For regular criminal cases, summary trials, as specified in the Indian Penal Code, are conducted. In serious offenses, a summon trial is employed. In the case of heinous or extremely serious crimes, the Juvenile Justice Board transfers the case to children's courts, where the trial proceeds.

Section 2: It plays a foundational role by defining crucial terms that form the basis of the Act's interpretation. It establishes the term "Child in Conflict with Law," referring to individuals below 18 years who are alleged to have committed an offense. Additionally, the Act defines a "Juvenile" as a person below eighteen years, while an "Adolescent" pertains to those aged between sixteen to eighteen years. These definitions are pivotal as they delineate the age group covered under the Act, distinguishing children in conflict with the law from adults within the justice system.

Section 12: It mandates the conduct of a preliminary assessment by the Juvenile Justice Board (JJB) concerning the mental and physical capacity of juveniles, their family background, circumstances, and needs.

This assessment is critical as it provides insights into the circumstances surrounding the alleged offense, enabling the formulation of appropriate rehabilitation plans tailored to the individual needs of the juvenile. It ensures a more holistic approach to the juvenile's case, considering their well-

Section 14: It outlines provisions for granting bail to juveniles in conflict with the law during the inquiry or trial of an offense. It upholds the principle of presumption of innocence and considers detention as a last resort.

This provision ensures that juveniles are not unnecessarily detained during trial proceedings and grants them the opportunity to reside in a less restrictive environment while ensuring their appearance before the authorities when required. It safeguards their rights and maintains their access to fair legal proceedings.

Section 15 highlights the dispositions available to the Juvenile Justice Board when dealing with juveniles in conflict with the law. It emphasizes rehabilitation, reformation, and social reintegration over punitive measures.

This section aims to ensure that the measures taken by the Board focus on the juvenile's overall well-being and future prospects. It prioritizes the welfare of the juvenile, aiming to provide suitable care, treatment, and rehabilitation conducive to their development.

Section 18 outlines the procedures for determining a juvenile's age in cases where there is a dispute regarding their age. The Act allows for an inquiry process and provides methods for age determination, including medical examination and scientific methods if necessary.

Accurate age determination is crucial to ensure that juveniles are treated according to the provisions specified for them under the Act, preventing any wrongful categorization and ensuring fair treatment based on their age.

As per the Act, the board is required to adjudicate cases within a maximum period of four months. However, in severe cases, the board may extend this period to six months.

For regular criminal cases, summary trials, as specified in the Indian Penal Code, are conducted. In serious offenses, a summon trial is employed. In the case of heinous or extremely serious crimes, the Juvenile Justice Board transfers the case to children's courts, where the trial proceeds.

Trial of children in age group of 16 to 18 years: Under no circumstances could the minor be tried in an adult court or sent to an adult jail, or given a penalty longer than 3 years. However, this changed with the 2015 amendment.

All children below the age of 18 would be treated equally except in the case of heinous crimes. Any minor of the age group of 16 to 18 years and who has been accused of committing a heinous crime can be tried like an adult. For this, the Juvenile Justice Board would assess the child's physical and mental capacities, his/her ability to comprehend the consequences of the crime, etc. and determine whether the child can be treated as an adult.

Punishment for Child in Conflict with Law: If the children's court finds a juvenile guilty after considering all relevant factors, it can impose various penalties except for the death penalty and life imprisonment.

The range of punishments includes fines, creative interventions such as group counselling involving psychotherapists or experts to address the offender's mindset and thoughts, conditional release based on a promise not to engage in future misconduct (typically in minor crimes), and placement in reformation homes for vocational and educational rehabilitation in severe cases.

Child in Need of Care and Protection

The terms "Child in Need of Care and Protection" are defined in the act, referring to children who require care and protection due to specific circumstances. The act outlines provisions for rehabilitating such children.

These children may include those who:

1. Lack a home or a stable place of residence.
2. Suffer from mental illness.
3. Have parents or guardians deemed unfit to provide care and protection.
4. Are vulnerable and at risk of being drawn into drug abuse or trafficking, among other factors.

Offenses Against Children & Penalties: The Act prescribes penalties for various offenses committed against children, including:

1. Disclosing the identity of children - Punishable by up to 6 months of imprisonment, a fine of 1 lakh rupees, or both.
2. Cruelty to a child - Carries a penalty of 3 years of imprisonment and a 1 lakh rupee fine.
3. Employing a child for begging - Results in 5 years of imprisonment and a 1 lakh rupee fine.
4. Providing intoxicating liquor or drugs to a child - Attracts a rigorous imprisonment term of 7 years and a 1 lakh rupee fine.
5. Sale of children for any purpose - Punishable by 5 years of imprisonment and a 1 lakh rupee fine, among other offenses.

These provisions are aimed at protecting the rights and well-being of children and ensuring that those who harm them face appropriate legal consequences.

Child Welfare Committee

The Child Welfare Committee (CWC) is an autonomous body constituted by the State government under the Juvenile Justice (Care and Protection of Children) Act. The CWC is responsible for the care, protection, and treatment of children in need. The CWC is required to be formed in every district of the state.

Constitution of CWC

- The Section 27 of JJ Act 2015 describes the composition of the CWC, including the number of members, the qualifications of members, and the term of office
- The CWC is made up of a chairperson and four members.
- At least one member should be a woman.
- One member should be an expert on children's issues.
- The chairperson should be well-versed in child welfare issues.
- The CWC has a three-year term.

Powers of CWC

- The Section 29 outlines the powers of the CWC, including the authority to dispose of cases for the care and protection of children
- The Section 30 outlines the functions and responsibilities of the CWC, including the requirement to inspect residential facilities for children
- The CWC has the same powers as a Metropolitan Magistrate or a Judicial Magistrate of First Class.
- The CWC the power to dispose of cases for the care, protection, treatment, development and rehabilitation of children in need of care and protection, as well as to provide for their basic needs and protection.
- The Act provides for an efficient and organized system for the adoption of orphaned, surrendered and abandoned children.
- It also makes it compulsory for all childcare institutions to be registered.
- An important provision of the amended Act is that it provides for minors in the age group 16 – 18 years to be treated as adults in the case of heinous crimes.
- The Act also gives the Central Adoption Resource Authority (CARA) statutory status.
- The Act distinguishes between children in conflict with the law and children in need of care and protection.

Duties of CWC

- The CWC is responsible for ensuring that standards of care are maintained in all child care institutions.
- It is responsible for addressing incidents of exploitation and abuse.

- The CWC is responsible for protecting human rights.
- It facilitates all child welfare related activities in the district

Child Care Institutions

The Child Care Institutions, which are defined by the JJ Act 2015, encompass a variety of facilities serving two distinct categories of children; those in need of care and protection and those in conflict with the law.

These institutions encompass children's homes, open shelters, observation homes, special homes, places of safety, and Specialized Adoption Agencies (SAAs). Their primary mission is to provide development and care services to children who fall under these categories, including orphans, abandoned children, surrendered children, trafficked children, and those whose families are unable to provide proper care for them.

Places of Safety specifically function as Observation Homes or Special Homes for children aged 16-18 years, who are accused or found guilty of committing serious offenses.

According to a study conducted by the Ministry of Women and Child Development, there are over 9,500 such institutions in the country, collectively housing more than 3,70,000 children.

All Child Care Institutions are mandated to register under the Juvenile Justice Act, as stipulated in Sections 2 (51) and Section 41. The Section 2 (51) defines "registered" in the context of child care institutions, referring to observation homes, special homes, places of safety, children's homes, open shelters, Specialized Adoption Agencies, fit facilities, or any other institution established in response to specific needs.

These facilities, whether managed by the State Government, voluntary organizations, or non-governmental organizations (NGOs), are subject to the governance and regulations outlined in the Juvenile Justice Act. This legislation allows both government and non-governmental organizations to establish institutional facilities for children. The Juvenile Justice Act of 2015 serves as the model rules for this purpose.

The fundamental right to life under Article 21 of the Indian Constitution extends to every child and young person, emphasizing the need for a supportive, protective, and nurturing environment that fosters their full potential.

State's Role in Rehabilitation

In situations where a child's own family cannot provide adequate care due to various reasons, such as illness, death, separation, desertion, or crisis, the State assumes responsibility for safeguarding the child's rights. This involves ensuring appropriate alternative care arrangements, either through competent local authorities or authorized civil society organizations (CSOs). The State's role includes overseeing the safety, well-being, and development of children placed in alternative care and regularly assessing the appropriateness of the care provided.

Rehabilitation and reintegration services for institutions registered under the Juvenile Justice Act are given in Section 53 of the Act. These services may include:

- i. Provision of basic necessities like food, shelter, clothing, and medical care, in accordance with prescribed standards.
- ii. Provision of equipment such as wheelchairs, prosthetic devices, hearing aids, Braille kits, or other aids and appliances for children with special needs.
- iii. Access to appropriate education, including supplementary education, special education, and education tailored to children with special needs, with the provisions of the Right of Children to Free and Compulsory Education Act, 2009 applying to children between six and fourteen years.
- iv. Skill development programs.
- v. Occupational therapy and life skill education.
- vi. Mental health interventions, including counselling specific to the needs of children.
- vii. Recreational activities, including sports and cultural activities.
- viii. Provision of legal aid when required.
- ix. Referral services for education, vocational training, addiction treatment, and medical care where necessary.
- x. Case management, including the preparation and follow-up of individual care plans.
- xi. Birth registration services.
- xii. Assistance in obtaining proof of identity when needed.

xiii. Any other service reasonably necessary to ensure the child's well-being, either provided directly by the State Government, registered or fit individuals or institutions, or through referral services.

In response to the rising cases of child sexual abuse, the Supreme Court of India directed the establishment of Child Care Institutions, particularly for victims of sexual offenses.

This initiative, led by Justices Madan B Lokur and Deepak Gupta, mandated the registration of all Child Care Institutions by December 31, 2017, and called for the establishment of Juvenile Justice Committees within High Courts to oversee the effective implementation of the Juvenile Justice (Care and Protection of Children) Act.

Case Laws

1. **M.C. Mehta v. State of Tamil Nadu (1991):** This landmark case addressed the rights and rehabilitation of juveniles in conflict with the law, focusing on their treatment and rehabilitation within Tamil Nadu's Borstal School. The Supreme Court emphasized the importance of upholding the rights of such juveniles, emphasizing their rehabilitation and reintegration into society as the primary objective. The ruling highlighted the need for humane treatment and rehabilitation measures, setting the foundation for a more compassionate approach to juvenile offenders.
2. **Gaurav Jain v. Union of India (1997):** This case drew attention to the conditions of juvenile offenders in detention centres and their exposure to adult criminals and adverse environments within prisons. The Supreme Court stressed the necessity of separate facilities for juveniles, emphasizing specialized care, protection, and rehabilitation. This ruling laid the groundwork for the establishment of dedicated facilities and programs catering to the unique needs of juvenile offenders.
3. **Salil Bali v. Union of India (2013):** This case raised concerns about legal representation for juvenile offenders during trial proceedings, highlighting their challenges in comprehending legal procedures. The Supreme Court underscored the importance of ensuring adequate legal representation for juveniles, mandating access to legal aid and representation for a fair trial and protection of their rights. The ruling reinforced the right to legal representation for juvenile offenders, ensuring their fair treatment within the justice system.

Adoption under Juvenile Justice Act

Section 56: Adoption serves as the means to ensure the right to a family for orphaned, abandoned and surrendered children, in accordance with the provisions of this Act, the rules established under it and adoption regulations set forth by the Authority.

Adoption of a child from a relative by another relative, regardless of their religion, can be pursued following the provisions of this Act and the adoption regulations prescribed by the Authority.

The provisions of this Act do not apply to the adoption of children governed by the Hindu Adoption and Maintenance Act, 1956.

All international adoptions must strictly adhere to the provisions of this Act and the adoption regulations established by the Authority.

Any individual who transfers a child's care and custody to another person in a foreign country or participates in such an arrangement without a valid court order will be subject to penalties as outlined in Section 80.

Adoption is a means to secure the right to a family for children within the Organisation of American States (OAS), as stipulated in Section 56(1) of the JJ Act.

The primary consideration in all adoption proceedings is the best interests of the child, as specified in Regulation 3(a) of AR, 2017.

Child placement should ideally occur within the child's own socio-cultural environment, in accordance with Regulation 3(b) of AR, 2017.

Every adoption must be officially registered on the CARINGS platform, as mandated by Regulation 3(c) of AR, 2017.

Strict confidentiality measures must be adhered to, as required by Section 74 of the JJ Act and Regulation 3(c) of AR, 2017.

Types of Adoptions as per the JJ Act, 2015 and AR, 2017

- Domestic adoption of OAS children within the same country
- International adoption of OAS children to foreign countries
- Domestic adoption by relatives of the child.
- International adoption by relatives of the child residing abroad.
- Adoption by step-parents.

Eligibility of Prospective Adoptive Parents : The Section 57 of JJ Act lays down specific eligibility criteria for prospective adoptive parents, ensuring that children are placed in secure and nurturing environments:

Physical and Mental Health: Prospective adoptive parents should be physically fit, mentally sound and capable of providing a safe and caring environment for the child.

Marital Status: The Act allows individuals, regardless of their marital status, to adopt. Married couples must provide their consent jointly.

Single and Divorced Individuals: Single or divorced individuals can also adopt, subject to meeting the criteria and complying with the adoption regulations framed by the Authority.

Gender Restrictions: Single males are generally not eligible to adopt female children. This provision is aimed at protecting the best interests of the child.

Adhering to Adoption Regulations: Prospective adoptive parents must adhere to the regulations for adoption under the JJ Act, established by the Authority. These regulations cover various aspects of adoption, including documentation, procedural requirements and post-adoption follow-ups.

Criteria for Child Adoption

The Section 41(5) of the JJ Act, 2000 outlines the requirements that must be met for a child to be offered for adoption:

In the case of an abandoned child, the child can be considered legally available for placement if two members of the Committee declare so.

For surrendered children, the child can be offered for adoption once the two-month period for reconsideration by the parents has lapsed.

In the case of a child who is capable of understanding and expressing consent, their consent must be obtained for adoption under Juvenile Justice Act.

Procedure for Adoption

The Section 58 of JJ Act deals with procedure for adoption. The Indian prospective adoptive parents residing in India, irrespective of their religion, who wish to adopt an orphaned, abandoned or surrendered child, may submit their application to a Specialised Adoption Agency, following the procedures specified in the adoption regulations established by the Authority.

The Specialised Adoption Agency will conduct a home study report for the prospective adoptive parents. Upon determining their eligibility, the agency will

refer a child who has been legally declared available for adoption to them. This referral will include the child's study report and medical assessment, following the procedures outlined in the adoption regulations framed by the Authority.

Upon receiving the child's acceptance from the prospective adoptive parents, along with the child's study report and medical report signed by the parents, the Specialised Adoption Agency will place the child in pre-adoption foster care. Subsequently, the agency will file an application in court to obtain the adoption order, following the procedures laid out in the adoption regulations set forth by the Authority.

Upon receiving a certified copy of the court order, the Specialised Adoption Agency will promptly handover the child to the prospective adoptive parents.

The progress and well-being of the child within the adoptive family will be monitored and assessed in accordance with the guidelines specified in the adoption regulations framed by the Authority.

Court Procedure and Penalty Against Payment in Consideration of Adoption – Section 61 of JJ Act

Before issuing an adoption order under Juvenile Justice Act, the court shall ensure that:

- (a) The adoption is in the best interests of the child.
- (b) Due consideration is given to the child's wishes, taking into account the child's age and understanding.
- (c) Neither the prospective adoptive parents nor the Specialised Adoption Agency, nor the parent or guardian of the child in the case of relative adoption, has given or agreed to give, nor received or agreed to receive, any payment or reward in exchange for the adoption, except as allowed under the adoption regulations established by the Authority, such as adoption fees, service charges or child care contributions.

Adoption proceedings shall be conducted in camera and the court shall conclude the case within two months from the date of filing.

Additional Procedural Requirements and Documentation: Under Section 62, any documentation and procedural requirements are not explicitly provided for in this Act, concerning the adoption of orphaned, abandoned or surrendered children by Indian prospective adoptive parents residing in India, non-resident Indians, overseas citizens of India, persons of Indian origin or foreign

prospective adoptive parents, shall be in accordance with the adoption regulations established by the Authority.

Specialised adoption agencies are responsible for ensuring that the adoption cases of prospective adoptive parents are concluded within four months from the date of receiving the application. The authorised foreign adoption agency, Authority and State Agency are required to monitor the progress of adoption cases and intervene when necessary to ensure adherence to the specified timeline.

Effect of Adoption: The Section 63 of JJ Act says that a child who is the subject of an adoption order issued by the court shall legally become the child of the adoptive parents. The adoptive parents shall assume the legal status of the parents of the child as if the child had been born to them.

This legal transformation applies to all purposes, including matters of inheritance, starting from the date when the adoption order becomes effective. On and from this date, all familial ties of the child in the biological family shall be severed and replaced by those established by the adoption order within the adoptive family.

However, any property previously owned by the adopted child before the adoption order takes effect will continue to be owned by the adopted child, subject to any obligations associated with that property, including the responsibility, if any, to support relatives in the biological family.

Reporting of Adoption: The Section 64 says that despite any provisions in other existing laws, information regarding all adoption orders under Juvenile Justice Act issued by the respective courts must be regularly forwarded to the Authority on a monthly basis.

This should be done in accordance with the procedures outlined in the adoption regulations set forth by the Authority, enabling the Authority to maintain comprehensive adoption data.

Penal Measures for Adoption Without Proper Procedures: The Section 80 of JJ Act says that any individual or organisation that offers, gives or receives an orphaned, abandoned or surrendered child for the purpose of adoption without adhering to the provisions and procedures specified in this Act shall be liable to punishment. Such punishment may include imprisonment for a term extending up to three years, a fine of one lakh rupees or both.

In cases where recognised adoption agencies commit this offense, in addition to the penalties imposed on the responsible individuals, the agency's registration

under Section 41 and its recognition under Section 65 may be revoked for a minimum period of one year.

Reports to be Treated as Confidential: The Section 99 says that

all reports related to the child and considered by the Committee or the Board shall be regarded as confidential. However, the Committee or the Board, at its discretion, may share the substance of these reports with another Committee or Board, the child, the child's parent or guardian. The victim shall not be denied access to their case record, orders and relevant documents.

Jurisdiction for Adoption Matters: Previously, the Juvenile Justice Board was responsible for permitting child adoption instead of the court. However, the Juvenile Justice (Amendment) Act, 2006 intentionally replaced the term "Board" with "Court." Therefore, in cases of adoption under Juvenile Justice Act, petitions should be filed under Section 41 of the Act before a Court.

It is essential to understand which specific court is meant by the Act to handle adoption matters concerning orphaned, abandoned and surrendered children since the Act does not define the term "court." In this regard, the Model Rules established by the Central Government regarding adoption should be considered.

According to Rule 33(5) of the Central Rules under the Act, the term "Court" refers to a civil court with jurisdiction over adoption and guardianship matters. This may include the court of the District Judge, Family Court and City Civil Court.

Juvenile Justice Amendment Act, 2021

The Juvenile Justice (Care and Protection of Children) Amendment Act, 2021 amended the Juvenile Justice Act, 2015. The amendment made changes to the categorization of offenses, adoption, and the eligibility criteria for Child Welfare Committee (CWC) members.

New Features

Non-cognizable offenses: Offenses that carry a punishment of three to seven years in prison are non-cognizable. This means that a police officer cannot register a First Information Report (FIR) without a Magistrate's order.

Adoption: District Magistrates can issue adoption orders, instead of courts.

Serious offenses: Offenses that carry a punishment of more than seven years in prison are considered serious.

Eligibility criteria for CWC members: The state government can terminate a member's appointment if they don't attend proceedings or sittings for a certain number of months.

Limitations

- Some say that the amendment makes it difficult for child victims to register FIRs.
- Some say that the amendment can have negative consequences for the welfare of children.

B. Probation of Offenders Act, 1958

Historical Background: The roots of probation as an alternative to imprisonment trace back to the late 19th century, influenced by the concept of rehabilitation over punishment. In England and the United States, the concept of conditional release or probation developed, allowing courts to release offenders under supervision rather than sentencing them directly to imprisonment.

In India, the Children's Act of 1908 was among the first legislative measures permitting courts to release children on probation, following recommendations from the Indian Jails Committee of 1919-20. A draft Probation of Offenders Bill was prepared in 1931, but it was not approved until 1958. With rising concerns over prison overcrowding, recidivism, and the reformatory needs of young offenders, the Act was finally enacted on May 16, 1958.

Meaning and Scope of Probation: The term "probation" derives from the Latin word "probo," meaning "to prove" or "to test." Probation, as per Black's Law Dictionary, refers to "allowing a person convicted of a minor offence to remain at large under a suspension of sentence during good behaviour, usually under the supervision of a probation officer. Probation provides an opportunity for convicted offenders to avoid imprisonment. It allows them to demonstrate good behaviour within society under certain conditions and the supervision of probation officers. This concept serves as a socialised penal mechanism, focusing on offender reformation without isolating them from the community.

Objectives: The Act primarily aims to:

1. **Rehabilitate First-time and Juvenile Offenders:** By avoiding prison sentences, the Act reduces the exposure of young and first-time offenders to hardened criminals, giving them a second chance to reform.

2. **Reduce Recidivism:** The rehabilitative approach attempts to prevent offenders from becoming habitual criminals.
3. **Reduce Overcrowding in Prisons:** Probation allows eligible offenders to serve sentences within the community, thereby reducing the burden on prison infrastructure.
4. **Support Social Reintegration:** By providing training, employment assistance, and monitoring, probation supports the social reintegration of offenders.

Salient Features of the Act: The Act comprises 19 Sections and extends across India (excluding Jammu and Kashmir). The key features include:

Admonition (Section 3): It grants the courts the power to release eligible offenders with just a reprimand. Conditions for this provision include:

1. The offender has no prior convictions.
2. The offence falls within certain IPC sections with minor offences, or other offences with a maximum sentence of two years.
3. The offender's character and the nature of the offence warrant an admonition rather than a custodial sentence.

This provision empowers courts to release first-time offenders after admonition (a formal reprimand), if they are convicted of minor offences such as theft with no prior convictions.

Release on Probation of Good Conduct (Section 4): Courts may release offenders on probation of good conduct without sentencing, provided they comply with set conditions. This applies only if the offence does not carry a life sentence or death penalty.

The most pivotal provision, Section 4, allows courts to release offenders on probation for good behaviour. This release is conditional, based on the court's assessment of the offender's character and the nature of the offence. Courts may impose certain conditions, which must be upheld by the offender during the probation period (maximum three years).

Compensation to Victims (Section 5): Courts can order offenders on probation to pay compensation for any harm caused to victims, along with covering the costs of the proceedings. The Section 5 empowers courts to order offenders on probation to compensate the victim for any harm caused, covering reasonable expenses incurred by the victim. This provision reflects a progressive approach

by ensuring that victims receive justice without necessarily imposing harsh sentences on offenders.

Duties of Probation Officers (Section 14): Probation officers play a crucial role in supervising probationers, assisting with their employment, and reporting on their progress to the courts. Probation officers play an important role in balancing public safety with the reformation of offenders.

Probation officers are tasked with supervising the offender, providing reports to the court, assisting in employment, and offering counselling and guidance to ensure successful reintegration. Their role is instrumental in balancing public safety and the offender's reformation. These duties include:

Supervising probationers: Probation officers monitor offenders on a daily basis and ensure they comply with court-ordered conditions.

Assisting with employment: Probation officers help offenders find suitable employment.

Advising on costs and compensation: Probation officers help offenders pay any costs or compensation ordered by the court.

Providing reports to the court: Probation officers submit reports to the court on the probationer's circumstances and progress.

Offering counselling: Probation officers provide counselling and guidance to help offenders reintegrate into society.

Following court restrictions: Probation officers must follow any restrictions or conditions prescribed by the court.

Helping offenders who can't follow conditions: Probation officers help offenders who are unable to follow the conditions of their probation.

Key Case Laws

1. **Arvind Mohan Sinha vs. Mulya Kumar Biswas (1974):** The Supreme Court reinforced that the Act is a reformatory measure designed to rehabilitate rather than punish amateur offenders who have the potential for reform.
2. **Phul Singh vs. State of Haryana (1980):** The court clarified that Section 4 should not be applied in cases undeserving of leniency, emphasising that probation must not compromise public interest.

3. **Basikesan vs. State of Orissa (1967):** A 20-year-old offender was released on admonition under Section 3, exemplifying the Act's reformatory intent for young, first-time offenders.
4. **Ram Prakash vs. State of Himachal Pradesh (1973):** The Supreme Court held that Sections 3 and 4 of the Act are not mandatory, thus granting courts discretion based on each case's specifics.

Advantages of the Probation of Offenders Act

- **Promotes Reformation Over Punishment:** Offenders, especially first-timers and juveniles, receive an opportunity to reform under supervision.
- **Reduces Prison Overcrowding:** By allowing eligible offenders to avoid incarceration, probation relieves pressure on the already overcrowded prison system.
- **Cost-effective:** Probation is generally less expensive than imprisonment and benefits the economy by helping offenders retain employment and contribute to society.
- **Supports Community Integration:** Probation, by allowing offenders to stay within society, fosters community ties and facilitates a smoother transition to law-abiding behaviour.

Challenges and Criticisms

1. **Lack of Uniform Implementation:** The discretionary power vested in courts often leads to inconsistent application of probation. Different judges may interpret probation eligibility differently, leading to varied outcomes.
2. **Insufficient Resources for Probation Officers:** Probation officers are essential for effective supervision, but they are often overburdened and lack sufficient resources, limiting their effectiveness.
3. **Public Perception:** The public may view probation as "lenient" on crime, which can affect the judiciary's willingness to use it in certain cases.
4. **Inadequate Psychological Support:** Probation often overlooks the mental health needs of offenders, who may require counselling to prevent recidivism. Without such support, probation's rehabilitative potential may be reduced.
5. **Probation Violations:** While the Act mandates probation compliance, violations occur due to various reasons, including lack of adequate

supervision and resources. This can weaken public trust in probation as an effective reform tool.

Impact of the Probation of Offenders Act on Criminal Justice

The Probation of Offenders Act of 1958 has influenced India's criminal justice system by introducing a humane and reformatory approach. By mitigating the negative impacts of imprisonment on first-time and minor offenders, the Act promotes social reintegration, which aligns with broader objectives of restorative justice.

Comparative Perspective: Probation in Other Countries

In contrast to India, probation systems in developed nations like the United States and the United Kingdom offer a wider range of rehabilitative services, including vocational training, mental health counselling, and community service options. These countries also have specialised probation departments with structured resources, providing models that India can adopt to enhance its own probation system.

Recommendations for Improvement

1. **Enhanced Training for Probation Officers:** Equipping probation officers with specialised training in psychology, social work, and counselling could improve rehabilitation outcomes.
2. **Resource Allocation:** Increased government funding for probation services would reduce the burden on officers and allow for more personalised supervision.
3. **Public Awareness Campaigns:** Educating the public on the benefits of probation can help shift perceptions, building broader support for non-custodial sentencing options.
4. **Mental Health Support:** Integrating mental health resources into the probation process would support offenders in addressing underlying issues that may contribute to criminal behaviour.
5. **Standardised Guidelines:** Clear guidelines on when probation should be applied can help reduce discrepancies in court rulings, making the system more consistent and predictable.

